Smt. Hombalamma vs The Chief Executive Officer And The ... on 13 March, 2026

Author: Suraj Govindaraj

Bench: Suraj Govindaraj

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 13TH DAY OF MARCH, 2026

BEFORE

THE HON'BLE MR. JUSTICE SURAJ GOVINDARAJ

WRIT PETITION NO. 26364 OF 2025 (LB-RES)

BETWEEN

1. SMT. HOMBALAMMA
   W/O LATE BASAVEGOWDA,
   AGED ABOUT 78 YEARS,

2. SRI. APPAJI,
   S/O LATE BASAVEGOWDA,
   AGED ABOUT 53 YEARS,

   BOTH ARE RESIDING AT KODAGAHALLI VILLAGE,
   MUTHEGERE POST, BASARALU HOBLI,
   MANDYA TALUK, MANDYA DISTRICT - 571416.

... PETITIONER

(BY SRI. K.N. NITHISH., ADVOCATE)

AND

Digitally signed by
VARSHA N
RASALKAR
Location: HIGH
COURT OF
KARNATAKA

1. THE CHIEF EXECUTIVE OFFICER AND

   THE APPALLENT AUTHORITY

   ZILLA PANCHAYATH, MANDYA,
   MANDYA DISTRICT- 571401.

2. THE EXECUTIVE OFFICER
   AND COMPETENT AUTHORITY,
   TALUK PANCHAYATH, MANDYA,
   MANDYA TALUK,
   MANDYA DISTRICT - 571401.

3. THE PANCHAYATH DEVELOPMENT OFFICER,
   BASARALU GRAMA PANCHAYATH,
   BASARALU, MANDYA TALUK,
   MANDYA DISTRICT - 571416.

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4. SRI. K.C. SHIVARAMU,
   S/O LATE CHIKKE GOWDA,
   KODAGAHALLI, MANDYA TALUK,
   MANDYA DISTRICT - 571416.

5. THE TAHSILDAR
   MANDYA TALUK,
   MANDYA DISTRICT.

6. ASSISTANT DIRECTOR OF LAND RECORDS
   MANDYA TALUK,
   MANDYA DISTRICT.

.... RESPONDENTS

(BY SRI. M.S. DEVARAJU., ADVOCATE FOR R1 TO R3;
SRI. A. NAGARAJAPPA.,ADVOCATE FOR R4;
SRI. BOPPANNA BELLIYAPPA., AGA FOR R5 & R6

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 & 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT IN THE NATURE OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER, OR DIRECTION, QUASHING THE IMPUGNED ORDER DATED 13.02.2025 PASSED BY RESPONDENT NO.2 IN APPEAL NO.19/2024-25 AT ANNEXURE K AND ETC.

THIS WRIT PETITION COMING ON FOR ORDERS AND HAVING BEEN RESERVED FOR ORDERS ON 28.01.2026, THIS DAY, THE COURT PRONOUNCED THE FOLLOWING:

CAV ORDER

1. The Petitioners are before this Court seeking for the

following reliefs:

"A. Issue a writ in the nature of Certiorari or any other appropriate writ, order, or direction, quashing the impugned order dated 13.02.2025 passed by respondent no.2 in Appeal no.19/2024-25 at Annexure K,

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B. Issue a writ in the nature of Certiorari or any other appropriate writ, order, or direction, quashing the impugned order dated 30.07.2025 passed by respondent no.1 in Appeal No. MDYZP-DEV00THS:1/2025 at Annexure P

C. Issue a writ in the nature of Certiorari or any other appropriate writ, order, or direction, quashing the impugned Notice dated 21.08.2025 issued by respondent no.3 bearing No. GRA PUM//2025-2026 at Annexure S

D. Grant such other further reliefs as this Hon'ble Court deems fit in the circumstances of the case in the interest of justice and equity."

2. Petitioner No.1 claims to be the absolute owner of a house property situated at Kodagahalli Village, BasaraluHobli, Mandya Taluk and District, in respect of which an E-Khatha bearing No.152100404801220007 has been issued by the competent authority. According to the petitioner, the said property is ancestral in nature, and the family of the petitioner has been in continuous possession and enjoyment of the property for more than eighty years. It is contended that the revenue records as well as the municipal records recognise the possession and enjoyment of the petitioner's family over the said property.

3. Petitioner No.2 similarly claims to be the absolute owner of property bearing Site No.6/6, situated at Kodagahalli Village, BasaraluHobli, Mandya Taluk and

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District. It is contended that the said property is also ancestral property, originally belonging to the grandfather of petitioner No.2, namely Patel Javaregowda, S/o Patel Kalegowda. According to petitioner No.2, upon the demise of his father and grandfather, he has succeeded to the property by way of inheritance and has been in lawful possession and enjoyment of the same.

4. The petitioners contend that they are the absolute owners in possession and enjoyment of their respective properties. It is alleged that respondent No.4, who according to the petitioners has no right, title or interest in the said properties, has been interfering with their peaceful possession and enjoyment. In that background, the petitioners instituted a suit in O.S. No.210/2022 before the II Additional Civil Judge and JMFC, Mandya, seeking appropriate reliefs to protect their possession.

5. The Trial Court, upon considering the pleadings and the material placed on record, by order dated 14.03.2022, granted an order of temporary injunction, restraining respondent No.4 and his agents from interfering with the peaceful possession and enjoyment of the petitioners' properties during

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the pendency of the suit. The petitioners contend that the said order continues to be in force and the civil dispute between the parties is presently pending adjudication before the competent civil court.

6. It is further contended that respondent No.4 claims ownership over land bearing Sy. No.34/3 measuring 34 guntas, situated at Kodagahalli Village, BasaraluHobli, Mandya Taluk and District, which is stated to be adjacent to the properties claimed by the petitioners. According to the petitioners,

respondent No.4, asserting that the petitioners have encroached upon a portion of the said land, made representations before the Panchayat authorities seeking removal of the alleged encroachment. Respondent No.4 thereafter approached this Court by filing W.P. No.18300/2022.

7. This Court, by order dated 04.07.2024 in the said writ petition, directed the Panchayat Development Officer (respondent No.3) to consider the representation submitted by respondent No.4 in terms of Sub-Rule (3) of Rule 3 of the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 (hereinafter referred to as "the 2011 Rules") and to forward the same to

the competent authority, namely the Executive Officer, Taluk Panchayat, within a period of fifteen days. The Executive Officer was further directed to consider the representation after issuing notice to the parties under Rule 4 of the 2011 Rules and pass appropriate orders in accordance with law.

8. The petitioners contend that pursuant to the said directions, the Executive Officer, Taluk Panchayat (respondent No.2), without conducting a proper spot inspection, without holding any enquiry, and without recording the evidence of the parties, proceeded to pass the impugned order dated 13.02.2025 in Appeal No.19/2024-2025, directing removal of the alleged encroachment said to have been made by the petitioners.

9. It is further contended that even prior to the passing of the impugned order, the Panchayat Development Officer (respondent No.3) had submitted a report dated 20.03.2023 to the Executive Officer stating that the disputed land does not fall within the jurisdiction of the Grama Panchayat and that complaints relating to such lands falling within gramathana limits cannot be treated as encroachments upon Government land. According to

the petitioners, the said report clearly indicated that the Panchayat authorities lacked jurisdiction to initiate proceedings under the 2011 Rules.

10. Aggrieved by the order directing removal of encroachment, the petitioners initially approached this Court in W.P. No.7693/2025. This Court, by order dated 18.03.2025, disposed of the said writ petition granting liberty to the petitioners to file an appeal before the competent Appellate Authority within ten days, while keeping the order directing removal of encroachment in abeyance.

11. Pursuant thereto, the petitioners preferred an appeal in Appeal No.1/2025 before respondent No.1 - the Appellate Authority. However, according to the petitioners, respondent No.1, without properly appreciating the factual and legal contentions raised by them and without adverting to the jurisdictional issue raised by the petitioners, dismissed the appeal by order dated 30.07.2025. It is challenging the said appellate order that the petitioners have approached this Court in the present writ petition seeking the reliefs set out in the petition.

12. Sri K N Nithin, learned counsel appearing for the petitioners submits that:

12.1. The ownership and possession of the petitioners over their respective properties is not in dispute. According to him, the petitioners have never encroached upon any Government road nor constructed any structure on Government land, as alleged by respondent No.4.

12.2. These aspects have not been properly

examined or appreciated by the authorities while passing the impugned orders. Learned counsel further submits that the Khatha certificate and the demand register maintained by the Panchayat authorities recognise the properties of the petitioners, though the said documents may not specifically disclose the exact measurement of the property.

12.3. Elaborating further, learned counsel submits that the Khatha certificate as well as the demand register clearly indicate that the northern boundary of the petitioners' properties is a road. This, according to him, clearly establishes that the petitioners' properties extend up to the said road. The road continues to exist in its original form, and there has been no encroachment upon the said road by the

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petitioners. It is therefore contended that there is no intervening land between the petitioners' properties and the road that can be claimed as Government land which the petitioners are alleged to have encroached upon.

12.4. The usage of the expression "gramathana land" by the respondents is wholly misconceived. According to him, the term gramathana ordinarily refers to sites or lands situated within the village habitation area designated for residential or non-agricultural purposes. In the present case, the lands belonging to the petitioners are agricultural lands, and therefore the concept of gramathana land is wholly inapplicable to the petitioners' properties.

12.5. The lands belonging to the petitioners are neither Government lands nor lands belonging to the Gram Panchayat. Even assuming that the lands fall within the limits of a gramathana, the same cannot automatically be treated as Government land. According to him, the petitioners are private individuals who have inherited the properties through their

predecessors, and therefore the lands in

question are private lands and cannot be treated as Government property by the authorities.

12.6. The petitioners have already instituted a civil suit in O.S. No.210/2022 before the II Additional Civil Judge and JMFC, Mandya, seeking protection of their possession against respondent No.4. In the said suit, the civil court has granted an order of temporary injunction restraining respondent No.4 from interfering with the petitioners' possession. According to him, the existence of the said injunction order has not been taken into consideration by the authorities while passing the impugned orders, which vitiates the decision-making process.

12.7. In matters relating to identification of property, boundaries always prevail over measurements or survey numbers. The Khatha certificate and the demand register clearly disclose that the northern boundary of the petitioners' properties is the road, and therefore the lands extending up to the road must necessarily be treated as belonging to the petitioners. He submits that merely because a portion of land is vacant, it

cannot be presumed to be Government land. According to him, the vacant portion of land also belongs to the petitioners, and it is on this land that the petitioners have constructed a cattle shed for the purpose of housing their cattle.

12.8. The initial allegation against the petitioners was that they had encroached upon the road itself. However, the survey report subsequently produced clearly establishes that there has been no encroachment upon the road. Having accepted that the road itself has not been encroached upon, it cannot now be contended that the land beyond the road constitutes gramathana land or Government land allegedly encroached upon by the petitioners. According to him, these two contentions are mutually destructive and cannot stand together.

12.9. The spot inspection report relied upon by the authorities has been prepared in violation of the principles of natural justice. According to him, no prior notice was issued to the petitioners regarding the proposed inspection, nor were the petitioners afforded an opportunity to

remain present during the inspection or to place their objections. The report having been prepared behind the back of the petitioners, the same cannot be relied upon to sustain the impugned orders.

12.10. He relies upon the decision of Jagmittar Sain Bhagat Vs. Director, Health Services, Haryana and Others1, more particularly, paras 7 to 9 thereof, which are reproduced hereunder for easy reference.

> 7. Indisputably, it is a settled legal proposition that conferment of jurisdiction is a legislative function and it can neither be conferred with the consent of the parties nor by a superior Court, and if the Court passes a decree having no jurisdiction over the matter, it would amount to nullity as the matter goes to the roots of the cause. Such an issue can be raised at any stage of the proceedings. The finding of a Court or Tribunal becomes irrelevant and unenforceable/ inexecutable once the forum is found to have no jurisdiction. Similarly, if a Court/Tribunal inherently

lacks jurisdiction, acquiescence of party equally should not be permitted to perpetuate and perpetrate, defeating the legislative animation. The Court cannot derive jurisdiction apart from the Statute. In such eventuality the doctrine of waiver also does not apply. (Vide: United Commercial Bank Ltd. v. Their Workmen, AIR 1951 SC 230; Smt. Nai Bahu v. Lal Ramnarayan & Ors., AIR 1978 SC 22; Natraj Studios (P) Ltd. v. Navrang Studios &Anr., AIR 1981 SC 537;

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and KondibaDagadu Kadam v. Savitribai Sopan Gujar & Ors., AIR 1999 SC 2213).

8. In Sushil Kumar Mehta v. Gobind Ram Bohra (Dead) Thr. Lrs., (1990) 1 SCC 193, this Court, after placing reliance on large number of its earlier judgments particularly in Premier Automobiles Ltd. v. K.S. Wadke & Ors., (1976) 1 SCC 496; Kiran Singh v. Chaman Paswan, AIR 1954 SC 340; and Chandrika Misir &Anr. v. Bhaiyalal, AIR 1973 SC 2391 held, that a decree without jurisdiction is a nullity. It is a coram non judice; when a special statute gives a right and also provides for a forum for adjudication of rights, remedy has to be sought only under the provisions of that Act and the Common Law Court has no jurisdiction; where an Act creates an obligation and enforces the performance in specified manner, "performance cannot be forced in any other manner."

9. Law does not permit any court/tribunal/authority/forum to usurp jurisdiction on any ground whatsoever, in case, such a authority does not have jurisdiction on the subject matter. For the reason that it is not an objection as to the place of suing;, "it is an objection going to the nullity of the order on the ground of want of jurisdiction". Thus, for assumption of jurisdiction by a court or a tribunal, existence of jurisdictional fact is a condition precedent. But once such jurisdictional fact is found to exist, the court or tribunal has power to decide on the adjudicatory facts or facts in issue. (Vide: Setrucharlu

Ramabhadra Raju Bahadur v. Maharaja of Jeypore, AIR 1919 PC 150; State of Gujarat v. Rajesh Kumar Chimanlal Barot &Anr., AIR 1996 SC 2664; Harshad Chiman Lal Modi v. D.L.F. Universal Ltd. &Anr., AIR 2005 SC 4446; and Carona Ltd. v. M/s. Parvathy Swaminathan & Sons, AIR 2008 SC 187

12.11. By relying upon the decision of the Hon'ble Supreme Court in Jagmittar Sain Bhagat's, he submits that jurisdiction cannot be assumed by an authority unless such jurisdiction is expressly conferred by statute. According to him, the Hon'ble Supreme Court has categorically held that conferment of jurisdiction is a legislative function, and neither consent of parties nor conduct of the parties can confer jurisdiction upon an authority that inherently lacks the same. If an authority passes an order without jurisdiction, such an order would be void ab initio and a nullity in the eye of law, and the defect goes to the very root of the matter.

12.12. The jurisdiction exercised by the Panchayat authorities in the present matter is itself without authority of law, inasmuch as the land in question is neither Government land nor Panchayat land. According to him, proceedings under the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 can be invoked only when there is an encroachment upon Government land, Panchayat property or public property. In the

present case, when the lands admittedly belong

to the petitioners and the dispute is essentially a private boundary dispute between neighbouring landowners, the Panchayat authorities could not have assumed jurisdiction under the said Rules.

12.13. The report submitted by the Panchayat Development Officer dated 20.03.2023 itself records that the disputed property does not fall within the jurisdiction of the Gram Panchayat. Once such a finding had been recorded by the competent officer, the Executive Officer could not have proceeded further to direct removal of alleged encroachment, since the very jurisdictional fact required for exercise of power was absent.

12.14. The impugned proceedings suffer from lack of jurisdiction at the threshold, and any order passed in the absence of such jurisdiction is liable to be treated as non est in the eye of law. Placing reliance on the principle laid down in JagmittarSain Bhagat, he submits that an order passed by an authority lacking jurisdiction cannot be sustained merely because

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the authority proceeded to examine the merits of the matter.

12.15. On that basis, he submits that the impugned orders passed by respondent No.2 as well as the appellate order passed by respondent No.1 are liable to be quashed, since the very initiation of proceedings under the 2011 Rules was without jurisdiction. According to him, the dispute, if any, between the petitioners and respondent No.4 is purely civil in nature, and the parties would have to work out their remedies before the competent civil court.

12.16. He relies upon the decision of Smt.Gowramma

and Others Vs. The Chief Executive Officer

and Others , more particularly, para 7 thereof, which is reproduced hereunder for easy reference.

> 7. Since the petition schedule property is being claimed by the respondent-Panchayat, action in this regard has to be taken in the manner set out in the statute, namely, Section 211 of the Act. Admittedly, no such proceedings have been initiated in the present case. Rule 3 presupposes Obstruction And Encroachment of the Panchayat property. It also

> presupposes there being no dispute by the encroacher, which is not the case in the instant petition. It is the case of the petitioners that they are in possession and enjoyment of the property on their own right since time immemorial and that there is no encroachment and the property does not belong to the Panchayat. This being the contentious issue the respondent-authority ought to have initiated the proceedings under Section 211 of the Act and only after determining matter could have proceeded to pass the impugned resolution, notices and the order as the case may be.

12.17. By relying on Gowrammahe submits thatthe ratio laid down therein clearly indicates that proceedings under the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 can be invoked only in cases where the land in question is admittedly Panchayat property and there is an undisputed encroachment upon such property. In cases where title to the property itself is disputed, the Panchayat authorities cannot invoke the summary procedure contemplated under the said Rules.

12.18. When the Panchayat itself claims that the property belongs to it and the alleged

encroacher disputes the same, the authorities are required to initiate proceedings under Section 211 of the Karnataka Panchayat Raj Act

and determine the issue in accordance with the procedure prescribed therein. Only after such determination of title or ownership can any consequential action relating to removal of encroachment be undertaken.

12.19. Applying the aforesaid principle to the facts of the present case, learned counsel submits that the petitioners have categorically asserted their ownership and possession over the property in question and have also produced documentary material such as Khatha certificates, demand register entries and other records evidencing their possession and enjoyment. Therefore, the question as to whether the land belongs to the petitioners or constitutes Panchayat land is itself a seriously disputed question of fact and title.

12.20. In such circumstances, according to him, the authorities could not have invoked the summary procedure contemplated under Rule 3 of the 2011 Rules, which presupposes the existence of Panchayat property and a clear case of encroachment. Instead, the authorities ought to have initiated appropriate proceedings

under Section 211 of the Act for adjudication of the dispute relating to ownership and possession.

12.21. Learned counsel therefore submits that the impugned proceedings initiated under the 2011 Rules are wholly unsustainable, as the authorities have bypassed the statutory mechanism contemplated under Section 211 of the Act for determination of disputed claims relating to Panchayat property.

12.22. On these grounds, he submits that the impugned orders passed by respondent No.2 as well as the appellate order passed by respondent No.1 are liable to be quashed, reserving liberty to the parties to work out their remedies before the appropriate forum in accordance with law.

12.23. He relies upon the decision of Chief Executive Officer and other Vs. Smt. Gowramma and others3, more particularly, paras 3 and 4 thereof, which are reproduced hereunder for easy reference.

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W.A.No.144/2023 dated 04.09.2023
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3. We have heard the learned counsel appearing for the Appellant - Zilla Panchayat and we have perused the Appeal papers. We do not find any reason to grant indulgence in the matter firstly because, the Appellant - Panchayat had failed to any material to vouch its title to the subject property by instituting proceedings under Section 211(1) of the 1993 Act which has the following text:

"(1) In any village to which a survey of lands other than lands ordinarily used for the purposes of agriculture only has been or shall be extended under any law for the time being in force, where any property or any right in or over any property is claimed by or on behalf of the Grama Panchayat, or by any person as against the Grama Panchayat, it shall be lawful for the Assistant Commissioner after

enquiry of which due notice has been given, to pass an order deciding the claims."

The above language of the provision makes it abundantly clear that where encroachment of Panchayat property is sought be removed, the enquiry has to be held by the Assistant Commissioner with the participation of the Panchayat concerned and the other stakeholders. In such a proceeding, the Panchayat can produce the essential material to vouch its title to the property. This enquiry has not happened before issuing the order that was challenged in the Writ Petition. Even otherwise, nothing prevented the subject Panchayat to place on record in the subject proceedings such material when it was claiming to be the owner of the property in question.

4. We are not impressed by the submission of learned Panel Counsel for the Appellant - Panchayat that the impugned order is voilative of the provisions of Rule 3of 2011 Rules which read as under:

"The Panchayat Development Officer or the Village Accountant shall if it appears to him that a person who is not duly authorized has caused obstructions and encroachments of Gram Panchayat / Poramboke land, public street, place, waste land, ponds, tanks, play ground, parks, public utility lands, cremation grounds or grave yards or in or over or upon any open drain, gutter, sewer or aqueduct in such street or place or in any open site not being private property and the person building or setting up of encroachment or has removed earth, sand other than sand used for and (2) of Section 72of the Act Suo motu send a report and necessary documents to the Competent Authority at the earliest and not later than fifteen days from the date of knowledge of such obstructions and encroachments".

The above provisions are wider texts of section 211 of 1993 Act; they speak of the Competent Authority and the proceedings are initiated before him by the Panchayat Development Officer or the jurisdictional Village Accountant. The procedural formalities also

have been prescribed for operating the said provision. We fail to understand how the impugned order of the learned Single Judge can be said to have been made in breach of this Rule.

12.24. By relying on the Division Bench of this court in Gowramma, he submits that the law has been clearly laid down that when a Panchayat claims that a particular property belongs to it and alleges encroachment by a private party, the Panchayat must first establish its title to the property by initiating proceedings under

Section 211 of the Karnataka Panchayat Raj Act.

12.25. The Division Bench has categorically observed that Section 211 of the Act provides the statutory mechanism for adjudication of rival claims relating to Panchayat property, and such an adjudication must be carried out by the Assistant Commissioner after holding an enquiry and after providing due notice and opportunity to all stakeholders.

12.26. According to him, only after such an enquiry determining the question of ownership and the rights of the parties can any further action relating to removal of encroachment be initiated. Without such adjudication, the Panchayat authorities cannot assume that the land in question belongs to the Panchayat and proceed to remove alleged encroachments.

12.27. The Division Bench has also clarified that Rule 3 of the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 cannot be invoked independently when the very title to the land is disputed. The said Rule presupposes the existence of Panchayat

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property and a clear case of encroachment, and therefore cannot be invoked where the alleged encroacher disputes the Panchayat's ownership.

12.28. In the present case, according to learned counsel, the petitioners have categorically disputed that the property belongs either to the Panchayat or to the Government, and have asserted their own title and possession over the land. Therefore, the authorities were required to first establish the Panchayat's claim through proceedings under Section 211 of the Act.

12.29. Admittedly no such proceedings under Section 211 of the Act have been initiated in the present case, nor has any enquiry been conducted by the Assistant Commissioner to determine the competing claims of the parties.

12.30. In the absence of such determination of title, the authorities could not have proceeded to direct removal of the alleged encroachment under the 2011 Rules, as the foundational jurisdictional fact, namely that the land belongs to the Panchayat, has not been established.

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12.31. The impugned orders passed by respondent No.2 as well as the appellate order passed by respondent No.1 are contrary to the law laid down by the Division Bench of this Court in Chief Executive Officer vs. Smt. Gowramma and are liable to be set aside.

12.32. On that basis, he submits that the impugned proceedings deserve to be quashed, leaving it open to the Panchayat authorities, if so advised, to initiate appropriate proceedings under Section 211 of the Act in accordance with

law for adjudication of the competing claims relating to the property.

12.33. He relies upon the decision of Government of Andhrapradesh Vs. Thummala Krishna Rao and Another4, more particularly, paras 8 and 9 thereof, which are reproduced hereunder for easy reference.

8. It seems to us clear from these provisions that the summary remedy for eviction which is provided for by Section 6 of the Act can be resorted to by the Government only against persons who are in unauthorised occupation of any land which is "the

4 1982 (2) SCC 134

property of the Government". In regard to property described in sub-sections (1) and (2) of Section 2, there can be no doubt, difficulty or dispute as to the title of the Government and, therefore, in respect of such property, the Government would be free to take recourse to the summary remedy of eviction provided for in Section 6. A person who occupies a part of a public road, street, bridge, the bed of the sea and the like, is in unauthorised occupation of property which is declared by Section 2 to be the property of the Government and, therefore, it is in public interest to evict him expeditiously, which can only be done by resorting to the summary remedy provided by the Act. But Section 6(1) which confers the power of summary eviction on the Government limits that power to cases in which a person is in unauthorised occupation of a land "for which he is liable to pay assessment under Section 3". Section 3, in turn, refers to unauthorised occupation of any land "which is the property of the Government". If there is a bona fide dispute regarding the title of the Government to any property, the Government cannot take a

unilateral decision in its own favour that the property belongs to it, and on the basis of such decision take recourse to the summary remedy provided by Section 6 for evicting the person who is in possession of the property under a bona fide claim or title. In the instant case, there is unquestionably a genuine dispute between the State Government and the respondents as to whether the three plots of land were the subject-matter of acquisition proceedings taken by the then Government of Hyderabad and whether the Osmania University, for whose benefit the plots are alleged to have been acquired, had lost title to the property by operation of the law of limitation. The suit filed by the University was dismissed on the ground of limitation, inter alia, since Nawab Habibuddin was found to have encroached on the property more than 12 years before the date of

the suit and the University was not in possession of the property at any time within that period. Having failed in the suit, the University activated the Government to evict the Nawab and his transferees summarily, which seems to us impermissible. The respondents have a bona fide claim to litigate and they cannot be evicted save by the due process of law. The summary remedy prescribed by Section 6 is not the kind of legal process which is suited to an adjudication of complicated questions of title. That procedure is, therefore, not the due process of law for evicting the respondents.

9. The view of the Division Bench that the summary remedy provided for by Section 6 cannot be resorted to unless the alleged encroachment is of "a very recent origin", cannot be stretched too far. That was also the view taken by the learned Single Judge himself in another case which is reported in Meharunnissa Begum v. State of A.P. [(1970) 1 Andh LT 88] which was affirmed by a Division Bench [Meherunnissa Begum v. Govt. of A.P.AIR 1971 AP 382 : (1971) 1 Andh LT 292 : ILR 1972 AP 44] . It is not the duration, short or long, of encroachment that is conclusive of the question whether the summary remedy prescribed by the Act can be put into operation for evicting a person. What is relevant for

the decision of that question is more the nature of the property on which the encroachment is alleged to have been committed and the consideration whether the claim of the occupant is bona fide. Facts which raise a bona fide dispute of title between the Government and the occupant must be adjudicated upon by the ordinary courts of law. The Government cannot decide such questions unilaterally in its own favour and evict any person summarily on the basis of such decision. But duration of occupation is relevant in the sense that a person who is in occupation of a property openly for an appreciable

length of time can be taken, prima facie, to have a bona fide claim to the property requiring an impartial adjudication according to the established procedure of law.

12.34. By relying on Thummala Krishna Rao's case, His submission is that the Hon'ble Supreme Court has clearly laid down that summary proceedings for eviction can be invoked only when the land in question is undisputedly Government property and the person in occupation is clearly an unauthorised occupant.

12.35. The Hon'ble Supreme Court has categorically held that when there exists a bona fide dispute regarding title to the property between the Government and a private individual, the Government cannot unilaterally assume ownership and proceed to evict the person in possession by resorting to summary proceedings.

12.36. According to him, the ratio laid down in the aforesaid decision is that questions relating to disputed title cannot be adjudicated through summary procedures meant for removal of encroachments, since such procedures are

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intended only for clear cases of unauthorised occupation of Government land.

12.37. The Hon'ble Supreme Court has further observed that where a person is in possession of the property for a considerable length of time under a bona fide claim of right, such possession itself gives rise to a prima facie presumption that the dispute requires adjudication before a competent civil court or other appropriate forum following due process of law.

12.38. Applying the said principle to the present case, learned counsel submits that the petitioners have categorically asserted their ownership and possession over the land in question and have also placed material on record in support of their claim. Therefore, the dispute between the petitioners and the Panchayat authorities is not a simple case of encroachment upon Government land but a bona fide dispute relating to ownership and possession.

12.39. In such circumstances, according to learned counsel, the authorities could not have invoked the summary procedure under the Karnataka

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Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011, as the said procedure is not intended for adjudicating complex disputes relating to title.

12.40. Learned counsel therefore submits that the impugned orders have been passed in disregard of the settled principle of law laid down by the Hon'ble Supreme Court in Thummala Krishna

Rao's case, which clearly mandates that where a bona fide dispute regarding title exists, the parties must be relegated to the ordinary process of law and cannot be subjected to summary eviction proceedings.

12.41. On that basis, he submits that the impugned orders passed by respondent No.2 as well as the appellate order passed by respondent No.1 are liable to be set aside, reserving liberty to the parties to work out their rights before the appropriate forum in accordance with law.

12.42. He relies upon the decision of M.Sankaranarayanan Vs. Deputy Commissioner, Bangalore and Others5,

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more, particularly, paras 19 and 20 thereof, which are reproduced hereunder for easy reference.

19. Furthermore, a bare perusal of Section 67 clearly indicates that it only applies to public roads, streets, lanes, etc. or to such lands which are not the property of individuals, or an aggregate of persons legally capable of holding property. A dispute of title of property between the State and individuals cannot be decided in terms of Section 67. Merely because the Secretary of the Karnataka Public Service Commission had, in his complaint, opined that the deed of conveyance executed more than 100 years back was fraudulently claimed to be in favour of the First Princess, was not sufficient ground to proceed under Section 67. It could not be held that all subsequent transactions relating to the estate property were fraudulent. Fraud must be pleaded and proved; it

cannot be presumed. Therefore, we are of the view that the learned Single Judge was justified in holding that the proceedings under Section 67 were without jurisdiction. We are also of the view that the proceedings are beyond the period of limitation.

20. The Division Bench of the High Court held that, in terms of Section 67, the aggrieved parties can file either a civil suit or an appeal against the order before the Karnataka Appellate Tribunal under Section 49 of the KLR Act. It did not decide the claim on merits. In the peculiar facts and circumstances of the present case, where the dispute regarding title has been raised after more than 100 years and when there is evidence to show that the land was bought for the benefit of the First Princess, the allegation of fraud cannot be believed, especially in view of the

contemporaneous evidence and the subsequent acquisitions out of this very estate, both by the Maharaja of Mysore before Independence and by the State of Mysore after Independence. The notice being without jurisdiction could be quashed in proceedings under Article 227 of the Constitution of India.

12.43. By relying on M.Sankaranarayanan's case, he submits that the Hon'ble Supreme Court has categorically held that statutory provisions providing summary powers for removal of encroachments can be invoked only in respect of public property such as public roads, streets, lanes or lands which do not belong to private individuals.

12.44. The Hon'ble Supreme Court has further clarified that disputes relating to title between the State and private individuals cannot be adjudicated through summary proceedings under such statutory provisions. According to him, where there exists a serious dispute regarding ownership of property, the authorities must resort to the appropriate adjudicatory mechanism available under law, and cannot assume jurisdiction to decide such disputes unilaterally.

12.45. The Hon'ble Supreme Court has also observed that allegations such as fraud or illegal acquisition of property cannot be presumed merely on suspicion, but must be specifically pleaded and established through proper adjudicatory proceedings. In the absence of such proof, the authorities cannot invoke summary statutory powers to disturb long-standing possession of individuals.

12.46. Applying the aforesaid principle to the present case, learned counsel submits that the petitioners have categorically asserted their title and possession over the property in question, and therefore the dispute raised by respondent No.4 and the Panchayat authorities is essentially a title dispute which requires adjudication through proper legal proceedings.

12.47. The authorities could not have invoked the provisions of the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 to determine such disputed questions of title, since the said provisions are intended only for clear cases of encroachment upon public property.

12.48. On that basis, learned counsel submits that the impugned proceedings initiated by the authorities are without jurisdiction and contrary to the law laid down by the Hon'ble Supreme Court in M. Sankaranarayanan's case.

12.49. The impugned orders passed by respondent

No.2 as well as the appellate order passed by respondent No.1 deserve to be quashed, reserving liberty to the parties, if so advised, to work out their rights before the competent forum in accordance with law.

12.50. On all the above basis, he submits that the writ petition is required to be allowed and the reliefs sought for be granted.

13. Sri Vishwanath N, learned counsel for respondent No.4 submits that

13.1. Respondent No.4 is the absolute owner and is in peaceful possession and enjoyment of land bearing Sy.No.34/3 (new Nos.34/3A and 34/3B) measuring 34 guntas situated at Kodagahalli Village, Mandya Taluk and District. According to him, the revenue records in

respect of the said land stand in the name of respondent No.4, and he has been regularly paying land revenue and cultivating the land personally. It is therefore submitted that respondent No.4 has lawful title and possession over the said property.

13.2. Towards the eastern side of the property belonging to respondent No.4 there exists an unnumbered gramathana land measuring approximately one acre. According to him, a public road runs through the said gramathana land, which is used by the villagers and the public at large to access their houses, schools, temples and other public places. He submits that the said road has been in existence from time immemorial and has been continuously used by the public.

13.3. Apart from the said road, there is no other access or pathway available to reach the

property of respondent No.4 and other adjoining lands. Therefore, according to him, the road passing through the gramathana land is of vital importance to the residents of the

village as well as to the landowners whose lands lie beyond the said road.

13.4. Petitioner No.2 was earlier a member of the Gram Panchayat, and by taking undue advantage of his position, he is alleged to have encroached upon the gramathana land reserved for the public road. It is contended that the petitioners have put up a shed measuring approximately 60 feet by 50 feet by creating certain documents in the Panchayat records in the name of the mother of petitioner No.2, namely petitioner No.1, in an unauthorised manner, thereby encroaching upon the public road meant for common use.

13.5. It is in the above background that respondent No.4 had earlier instituted a civil suit in O.S. No.468/2020 before the competent civil court, in which the Court had granted an order of injunction against the petitioners. Despite the said order, according to him, the petitioners continued their acts of encroachment by constructing a temporary shed abutting the property of respondent No.4 and obstructing the public road.

13.6. Respondent No.4 thereafter approached this Court by filing W.P. No.18300/2022, wherein this Court directed the Panchayat Development

Officer to consider the representation submitted by respondent No.4 in terms of Sub-Rule (3) of Rule 3 of the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011.

13.7. Pursuant to the said directions, the Panchayat authorities conducted proceedings and passed orders directing removal of the encroachment made by the petitioners on the gramathana land and the public road. The petitioners, according to him, did not raise any effective objection at the appropriate stage and therefore the authorities proceeded to direct removal of the shed constructed by them.

13.8. The petitioners challenged the said action by filing an appeal before the Executive Officer of the Taluk Panchayat, who, after examining the matter, confirmed the action taken by the Panchayat authorities and directed removal of the encroachment. The petitioners thereafter preferred a further appeal before the Chief

Executive Officer of the Zilla Panchayat, who also upheld the order of the Executive Officer and dismissed the appeal filed by the petitioners.

13.9. On that basis, learned counsel submits that the authorities have acted strictly in accordance with law and in compliance with the directions issued by this Court, and therefore the impugned orders do not call for any interference by this Court in exercise of its jurisdiction under Article 226 of the Constitution of India.

13.10. His submission is that Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993, (hereinafter referred to 'Panchayat Raj Act' for short) debarred such filing of the petition. Section 211 is reproduced hereunder for easy reference:

"211. Decision of claims to property by or against Grama Panchayat.- (1) In any village to which a survey of lands other than lands ordinarily used for the purposes of agriculture only has been or shall be extended under any law for the time being in force, where any property or any right in or over any property is claimed by or on behalf of the Grama Panchayat, or by any person as against the Grama Panchayat, it shall be lawful for the Assistant

Commissioner after enquiry of which due notice has been given, to pass an order deciding the claims.

(2) Any person aggrieved by an order made under sub-section (1) may appeal to the Deputy Commissioner and the decision of the Deputy Commissioner shall be final.

(3) Any person shall be deemed to have had notice of any enquiry or order under this section if notice has been given in the prescribed manner."

13.11. Learned counsel further submits that the reliance placed by the petitioners on Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993 (hereinafter referred to as the "Panchayat Raj Act") is wholly misplaced. According to him, Section 211 contemplates a situation where a dispute arises regarding title to property between the Grama Panchayat and a private individual, in which event the matter is required to be adjudicated by the Assistant Commissioner after conducting an enquiry. In the present case, learned counsel submits that no such dispute of title arises between the Panchayat and the petitioners, inasmuch as the property in question is gramathana land reserved for public use as a road, and the petitioners have merely

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encroached upon the said land by putting up a temporary structure.

13.12. In the present case the proceedings have not been initiated independently by the Panchayat authorities but pursuant to the directions issued by this Court in W.P. No.18300/2022, wherein this Court had directed the Panchayat Development Officer to consider the representation submitted by respondent No.4 under Sub-Rule (3) of Rule 3 of the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011. According to him, when such a direction had already been issued by this Court to examine the alleged encroachment, the authorities were justified in proceeding under the 2011 Rules for removal of encroachment, and therefore Section 211 of the Panchayat Raj Act would have no application to the facts of the present case.

13.13. The proceedings initiated by the Panchayat authorities were strictly in compliance with the directions issued by this Court and in accordance with the statutory provisions governing removal of encroachments on

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gramathana land and public roads. On that basis, he contends that the petitioners cannot now seek to challenge the impugned orders by contending that the authorities ought to have resorted to proceedings under Section 211 of the Act.

13.14. The direction having been issued by this Court in W.P.No.18300/2022 to consider the encroachment, Section 211 would not apply, is his submission.

13.15. By their actions, the petitioners have obstructed the access of respondent No.4 to his property. It is in this background that respondent No.4 had earlier instituted O.S. No.468/2020, in which the competent civil court had granted an order of injunction. Considering the difficulties caused to respondent No.4 due to the obstruction allegedly created by the petitioners, this Court in W.P. No.18300/2022 had directed the Assistant Director of Land Records (ADLR) to carry out a measurement of the property in question. According to him, the measurement having been carried out, it has clearly revealed

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that there is an encroachment on the public road, and therefore the same is required to be removed.

13.16. Learned counsel further relies upon the daily order dated 17.11.2023 passed in W.P. No.18300/2022, wherein this Court, after considering the report submitted pursuant to the earlier order dated 26.10.2023, had recorded that respondent Nos.9 and 10 in that writ petition, who are none other than the present petitioners, had encroached upon the public road.

13.17. In the said proceedings, the petitioners themselves had undertaken before this Court that the encroachment would be removed. In view of such an undertaking, according to him, the petitioners cannot now be permitted to contend that there was no encroachment at all.

13.18. Learned counsel further relies upon the daily order dated 26.10.2023 passed in W.P. No.18300/2022, whereby this Court had directed the jurisdictional ADLR to conduct an inspection of the road, measure its length and

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width, and ascertain whether the road in question is a public road.

13.19. Learned counsel submits that pursuant to the said direction, the ADLR had conducted the inspection and submitted a report before this Court.

13.20. Referring to the said report, learned counsel submits that the area shown in three different colours, namely green, blue and brown, has been identified as part of the public road, which has been encroached upon. According to him, the report clearly establishes that the structures put up by the petitioners fall within the area forming part of the public road, and therefore the same are liable to be removed.

13.21. The report submitted pursuant to the directions issued in W.P. No.18300/2022 also identifies encroachments marked in different colours such as orange, green and pink. According to him, the report discloses that there is an encroachment of approximately ten feet in the area marked in orange, an encroachment of about three-fourths of a gunta in the area marked in green, and an encroachment of

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about one-fourth gunta in the area marked in pink.

13.22. The encroachment having been clearly established by the survey report, this Court ought to dismiss the present writ petition and direct the concerned authorities to remove the encroachment made on the public road.

13.23. The petitioners have filed objections to the inspection report contending that the ADLR did not conduct the spot inspection in their presence. According to the petitioners, when the ADLR and other officials visited the property on 13.10.2025, petitioner No.2 was indisposed and petitioner No.1, who is an elderly person, requested the officials to inform them in advance of the date of the survey so that they could take the assistance of their advocate and a surveyor. It is contended by the petitioners that no survey work was carried out on that day, and yet a report has been filed which is substantially similar to the earlier report submitted in W.P. No.18300/2022.

13.24. Even the report produced pursuant to the directions of this Court continues to bear the

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number of W.P. No.18300/2022, and except for certain changes in the colour markings, there is no substantial variation in the contents of the report. It is also pointed out that the report does not bear the signatures of the petitioners, and therefore, according to the petitioners, the same cannot be relied upon by this Court.

13.25. Learned counsel submits that in view of the rival contentions raised by the parties regarding the correctness of the survey report, this Court had appointed a Court Commissioner by order dated 30.10.2025, who thereafter submitted his report on 04.11.2025.

13.26. A perusal of the Court Commissioner's report indicates that the Commissioner visited the property bearing Gramathana No.6/76 measuring 91.87 square metres situated at Kodagahalli Village, Basaralu Grama Panchayat, Mandya District. The Commissioner verified the physical extent of the property as well as the cattle shed situated therein, in order to ascertain whether the same corresponds with the Khatha records produced by the petitioners,

and also placed on record the Google map of the location.

13.27. The Commissioner visited the property on 01.11.2025 at about 11:15 a.m. and has reported that the property consists of a Mangalore tiled house measuring approximately 1652 square feet, a green-coloured AC sheet structure measuring approximately 698.22 square feet, and a goat/cattle shed measuring approximately 735.30 square feet.

13.28. The report further indicates that the goat/cattle shed measures about 31.6 feet on the western side and narrows towards the eastern side to about 19.06 feet, excluding the drain. The Commissioner has also recorded that the distance between the goat/cattle shed and the road situated on the northern side is approximately eleven feet. Adjacent to the shed there exists a drain measuring about one and a half feet in width. The Commissioner has also produced photographs, a sketch, the Google map, and a screenshot from the Dishank application in support of the observations made in the report.

13.29. He relies upon the decision in Rajasthan State Industrial Development and Investment Corporation and Another Vs. Diamond and Gem Development Corporation Limited and Another6, more particularly paras 15 and 16 thereof, which are reproduced hereunder for easy reference:

> 15. A party cannot be permitted to "blow hot-blow cold", "fast and loose" or "approbate and reprobate". Where one knowingly accepts the benefits of a contract, or conveyance, or of an order, he is estopped from denying the validity of, or the binding effect of such contract, or conveyance, or order upon himself. This rule is applied to ensure equity, however, it must not be applied in such a manner so as to violate the principles of what is right and of good conscience. [Vide Nagubai Ammal v. B. Shama Rao [AIR 1956 SC 593] , CIT v. V. MR. P. Firm Muar , Ramesh Chandra Sankla v. Vikram Cement , Pradeep Oil Corpn. v. MCD, Cauvery Coffee Traders v. Hornor Resources (International) Co. Ltd., V. Chandrasekaran v. Administrative Officer.
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> 16. Thus, it is evident that the doctrine of election is based on the rule of estoppel--the principle that one cannot approbate and reprobate is inherent in it. The doctrine of estoppel by election is one among the species of estoppels in pais (or equitable estoppel), which is a rule of equity. By this law, a person may be precluded, by way of his actions, or conduct, or silence when it is his duty to speak, from asserting a right which he would have otherwise had.

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13.30. By relying on Diamond and Gem Development Corporation Limited's, his submission is that the petitioners, having accepted enquiry under Sub-Rule (3) of Rule 3 of 2011 Rules cannot now question the same. It would amount to approbating and reprobating, which is not permissible.

13.31. The Hon'ble Supreme Court has reiterated the well-settled principle that a party cannot be permitted to approbate and reprobate, or in other words, blow hot and cold in the same

breath. According to him, once a party has accepted the benefits of an order or has taken a particular stand before a court of law, such party cannot subsequently take a contradictory stand to the prejudice of the other side.

13.32. The petitioners had participated in the proceedings before this Court in W.P. No.18300/2022, and when the report regarding the alleged encroachment was placed on record, the petitioners had undertaken before this Court that the encroachment would be removed. Having made such a statement before this Court, the petitioners cannot now be

permitted to turn around and contend that no encroachment exists at all.

13.33. Learned counsel submits that such conduct on the part of the petitioners would clearly attract the doctrine of estoppel by election, which prevents a party from asserting inconsistent positions in successive proceedings.

13.34. According to him, the petitioners, having accepted the findings recorded in the earlier proceedings and having undertaken to remove the encroachment, are estopped from questioning the very existence of the encroachment in the present writ petition.

13.35. The present writ petition is not only devoid of merit but is also an attempt by the petitioners to resile from the position earlier taken before this Court, which cannot be permitted in view of the principles laid down by the Hon'ble Supreme Court in Diamond and Gem Development Corporation Limited's case.

13.36. On that basis, learned counsel submits that the petition deserves to be dismissed with appropriate directions to the concerned

authorities to remove the encroachment made by the petitioners on the public road.

14. Sri M S Devaraju, learned counsel appearing for Respondent Nos.1 to 3 submits that

14.1. The petitioners have failed to produce any legally acceptable document of title evidencing their ownership over the property in question. According to him, except making a bald assertion that the property is ancestral in nature, the petitioners have not placed on record any registered title deed, partition deed, grant order, mutation entry, revenue record or any other legally recognised document to substantiate their claim of ownership.

14.2. The entire case of the petitioners rests primarily upon Khatha entries and tax payment receipts, which according to him cannot be treated as documents of title. He submits that it is a settled principle of law that Khatha certificates, assessment extracts or entries in demand registers maintained by local authorities are only fiscal records prepared for the purpose of assessment and collection of property tax, and

such entries do not confer or recognise ownership over immovable property.

14.3. The Khatha relied upon by the petitioners appears to have been issued without any foundational title documents being produced before the Panchayat authorities. According to him, when a Khatha entry is created without proper verification of title documents, the same

cannot be relied upon to establish lawful ownership over the property.

14.4. The petitioners, having failed to produce any title document demonstrating the origin of their ownership, cannot assert that the property belongs to them merely by claiming that it is ancestral property. According to him, the petitioners have not placed any material such as genealogical records, revenue extracts or earlier survey records which would indicate that the property had devolved upon them through inheritance.

14.5. The absence of such documentary evidence, the claim of the petitioners that they are the absolute owners of the property cannot be accepted, particularly when the dispute relates

to gramathana land and public road land, which are ordinarily vested in the Panchayat for the benefit of the public.

14.6. The petitioners have failed to discharge the basic burden of establishing their title, and the writ petition is sought to be maintained on the basis of documents which do not have any evidentiary value for establishing ownership.

14.7. The material placed on record clearly establishes that the petitioners have encroached upon a portion of the public road and have constructed a cowshed or cattle shed on the said encroached portion. According to him, the construction of such a structure on the road area has resulted in obstruction to the free use of the road by the villagers and other members of the public.

14.8. The existence of the encroachment has been clearly revealed through the survey and inspection reports submitted by the competent authorities, including the report of the Assistant Director of Land Records (ADLR) as well as the

subsequent inspection carried out pursuant to

the directions issued by this Court in W.P. No.18300/2022.

14.9. According to him, the said reports identify the exact extent of the encroachment on the public road and demarcate the encroached portions using different colour markings, thereby clearly demonstrating that the structures put up by the petitioners fall within the road area reserved for public use.

14.10. When such encroachment upon a public road or public property is established through official survey records, the Panchayat authorities are under a statutory obligation to remove the obstruction and restore the road to its original condition, so that the rights of the public at large are protected.

14.11. The Panchayat authorities have initiated proceedings strictly in accordance with the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011, and the actions taken by them are pursuant to the directions issued by this Court in the earlier writ proceedings.

14.12. According to him, the authorities have conducted inspections, obtained survey reports and thereafter passed the impugned orders directing removal of the encroachment, and such action cannot be said to be arbitrary or illegal.

14.13. The impugned orders passed by the Panchayat authorities are lawful, justified and in furtherance of the statutory duty cast upon them to remove encroachments on public property. The present writ petition is devoid of merit and has been filed only with an intention to prevent the removal of the encroachment made by the petitioners on the public road.

14.14. On these grounds, he submits that this Court ought not to interfere with the action taken by the authorities, and the writ petition deserves to be dismissed with appropriate directions permitting the authorities to remove the encroachment and restore the public road for use by the villagers and the

15. Heard Sri K.N.Nithish, learned counsel for the petitioners, Sri Vishwanath N, learned counsel for Sri.A.Nagarajappa, learned counsel for respondent

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No.4 and Sri M.S.Devaraju, learned counsel for respondent Nos.1 to 3. Perused the papers.

16. The points that would arise for consideration are as under:

i) Whether the proceedings initiated by the Panchayat authorities under the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 directing removal of the alleged encroachment by the petitioners are sustainable in law?

ii) Whether, in the facts of the present case, the authorities could have exercised powers under the 2011 Rules, or whether the dispute raised by the petitioners regarding ownership and possession of the property required adjudication under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993?

iii) Whether the material placed on record, including the survey reports, inspection reports and the Court Commissioner's report, establish that the petitioners have encroached upon gramathana land or a public road?

iv) Whether the impugned order dated 13.02.2025 passed by respondent No.2 and the appellate order dated 30.07.2025 passed by respondent No.1 suffer from jurisdictional error, procedural irregularity or violation of the principles of natural justice?

v) Whether the petitioners have established any grounds warranting interference by this Court in exercise of its jurisdiction under Articles 226 and 227 of the Constitution of India?

vi) What order?

17. I answer the above points as follows:

18. Answer to Point No. (i):Whether the proceedings initiated by the Panchayat authorities under the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 directing removal of the alleged encroachment by the petitioners are sustainable in law?

18.1. Sri. K.N. Nithish submits that both the Petitioners are absolute owners in possession and enjoyment of their respective properties situated at Kodagahalli Village, BasaraluHobli, Mandya Taluk and District. Petitioner No.1 is the absolute owner of a house property in respect of which an E-Khatha bearing No.152100404801220007 has been issued by the competent authority. Petitioner No.2 claims

to be the absolute owner of property bearing Site No.6/6. Both properties are ancestral in nature and the Petitioners' family has been in

continuous, open and peaceful possession and enjoyment thereof for more than eighty years.

18.2. He submits that the Petitioners have never, at any point of time, encroached upon any Government road or constructed any structure upon Government land as alleged by Respondent No.4. The Khatha certificate and the demand register maintained by the Panchayat authorities recognise the properties of the Petitioners. The northern boundary of the Petitioners' properties, as clearly disclosed in the Khatha certificate and the demand register, is a road. This, according to learned counsel, establishes that the Petitioners' lands extend up to the said road, and the road continues to exist in its original form without any encroachment thereon.

18.3. Learned counsel submits that the usage of the expression "gramathana land" by the respondents is wholly misconceived and misplaced. The term "gramathana" ordinarily refers to sites or lands situated within the village habitation area designated for residential or non-agricultural purposes. The

Petitioners' lands are ancestral properties which have been in their possession for generations, and the concept of gramathana land, as applied by the respondents in the present proceedings,

has no application to the Petitioners' private properties.

18.4. Sri. K.N. Nithish further submits that the lands belonging to the Petitioners are neither Government lands nor lands belonging to the Gram Panchayat. Even if the said lands were to fall within the limits of a gramathana, that fact alone cannot render the lands Government property. The Petitioners are private individuals who have inherited the properties through their predecessors in title. The disputed land is private property in every sense, and no legal basis exists for treating it as Government or Panchayat land.

18.5. In support of the above contentions, learned counsel relies upon the Report dated 20.03.2023 submitted by the Panchayat Development Officer (Respondent No.3) to the Executive Officer (Respondent No.2). In the said report, the Panchayat Development Officer

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categorically recorded that the disputed land does not fall within the jurisdiction of the Grama Panchayat, and that complaints relating to such lands within gramathana limits cannot be treated as encroachments upon Government land. He submits that when the Panchayat Development Officer, who is the very authority designated under Rule 3 of the 2011 Rules to initiate proceedings, himself concluded that the subject land does not fall within the Panchayat's jurisdiction, the Executive Officer could not have validly proceeded to direct removal of the alleged encroachment.

18.6. Learned counsel further submits that the 2011 Rules can be invoked only in cases where there is an encroachment upon Government land, Panchayat property, or public property. The 2011 Rules have no application to disputes between private landowners regarding the boundaries of their respective private

properties. The present dispute is essentially a private boundary dispute between the Petitioners and Respondent No.4, and the Panchayat authorities could not have assumed

jurisdiction over such a dispute by invoking the 2011 Rules.

18.7. He further contends that the spot inspection report relied upon by the authorities was prepared in violation of the principles of natural justice. No prior notice was issued to the Petitioners regarding the proposed inspection, nor were the Petitioners afforded an opportunity to remain present during the inspection or to place their objections before the inspecting officer. The report having been prepared behind the back of the Petitioners, without their knowledge and without affording them any opportunity, the same cannot form the foundation of the impugned orders.

18.8. Turning to the legal grounds, Sri. K.N. Nithish relies upon the decision of the Hon'ble Supreme Court in Jagmittar Sain Bhagat and submits that the conferment of jurisdiction is a legislative function and cannot be conferred either by consent of parties or by any superior court. An order passed by an authority lacking jurisdiction is void ab initio and a nullity in the eye of law. The defect of want of jurisdiction

goes to the root of the matter and cannot be cured by the conduct of the parties or by the passage of time. According to learned counsel,

the Panchayat authorities lacked the jurisdictional fact required for invoking the 2011 Rules, namely, that the subject land must be Panchayat or Government property and not private property, and therefore any proceeding initiated by them is wholly without jurisdiction and must be treated as a nullity.

18.9. Sri. K.N. Nithish relies upon the decision of a co-ordinate bench of this Court in Smt. Gowramma and Others and submits that this Court has categorically held in the said decision that Rule 3 of the 2011 Rules presupposes the existence of Panchayat property and an undisputed case of encroachment. The Rule further presupposes that there is no dispute by the encroacher. In cases where the alleged encroacher disputes the character of the land and asserts his own right and title, the summary procedure under the 2011 Rules cannot be invoked; instead, the authorities must initiate proceedings under Section 211 of the 2011 Rules to first determine the question

of ownership and possession before taking any further action.

18.10. He further relies upon the Division Bench decision of this Court in Smt. Gowramma which affirmed the decision of the Learned Single Judge and which held that where the Panchayat claims that a particular property belongs to it, the Panchayat must first establish its title by initiating proceedings under Section 211 of the 2011 Rules. The Division Bench further held that the proceedings before the Assistant Commissioner under Section 211 must be conducted with the participation of the Panchayat and other stakeholders, and only after such determination of title can any consequential action relating to removal of encroachment be taken.

18.11. Sri. K.N. Nithish also relies upon the decision of

the Hon'ble Supreme Court in Government of Thummala Krishna Rao to contend that summary proceedings for eviction can be validly invoked only when the land in question is undisputedly Government property and the person in occupation is clearly an unauthorised

occupant without any bona fide claim to the property. When there exists a genuine and bona fide dispute regarding the title of the Government or the Panchayat to the property, the authorities cannot unilaterally decide the question of ownership in their own favour and proceed to remove the person in possession through summary proceedings. The summary procedure, by its very nature, is not suited for adjudication of complicated questions of title, which must be decided through the ordinary and due process of law.

18.12. He also places reliance on the decision of the Hon'ble Supreme Court in M. Sankaranarayanan to contend that statutory provisions conferring summary powers for removal of encroachments apply only to public roads, streets, lanes, and other lands that are not the property of individuals or an aggregate of persons legally capable of holding property. A dispute of title between the State or Panchayat and a private individual cannot be decided through summary proceedings under such provisions. When there is a serious and genuine dispute regarding ownership, the

authorities must resort to the appropriate

adjudicatory mechanism and cannot invoke summary statutory powers to disturb long-standing possession of private individuals.

18.13. On the above grounds, Sri. K.N. Nithish submits that the proceedings initiated under the 2011 Rules are wholly unsustainable in law, since the very precondition for the exercise of powers under the said Rules, namely, that the land must be Panchayat/Government property and not private property, has not been satisfied. The impugned orders passed pursuant to such proceedings are liable to be quashed.

18.14. Sri. Vishwanath N., learned counsel appearing for Respondent No.4, submits that Respondent No.4 is the absolute owner and is in peaceful possession and enjoyment of land bearing Survey No.34/3 (new Survey Nos.34/3A and 34/3B) measuring 34 guntas, situated at Kodagahalli Village, Mandya Taluk and District. The revenue records in respect of the said land stand in the name of Respondent No.4 and he has been regularly paying land revenue and cultivating the land.

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18.15. He submits that towards the eastern side of Respondent No.4's property, there exists an unnumbered gramathana land measuring approximately one acre, through which a public road runs. The said road has been used by the villagers and the public at large for accessing their houses, schools, temples, and other public places from time immemorial. The road is the only pathway available for Respondent No.4 and other adjoining landowners to access their properties.

18.16. Sri. Vishwanath N. submits that Petitioner No.2, who was earlier a member of the Gram Panchayat, took undue advantage of his position and encroached upon the gramathana land reserved for the public road by constructing a shed measuring approximately

60 feet by 50 feet. To legitimise this encroachment, documents were created in the Panchayat records in the name of Petitioner No.1 (mother of Petitioner No.2) in an unauthorised manner, and on the basis of such documents, the Petitioners are claiming a right to the encroached land.

18.17. He further submits that the present proceedings under the 2011 Rules were not initiated independently by the Panchayat authorities but were initiated strictly pursuant to and in compliance with the directions issued by this Court in W.P. No.18300/2022, in which this Court directed the Panchayat Development Officer to consider the representation submitted by Respondent No.4 under Sub-Rule (3) of Rule 3 of the 2011 Rules. According to learned counsel, when this Court had already directed that the proceedings be conducted under the 2011 Rules, it is impermissible for the Petitioners to now challenge the very jurisdiction of the Panchayat authorities to conduct such proceedings.

18.18. Sri. Vishwanath N. relies upon the order dated 17.11.2023 passed by this Court in W.P. No.18300/2022 and submits that this Court, after considering the inspection report submitted by the ADLR, had recorded that the Petitioners (respondent Nos.9 and 10 in that writ petition) had encroached upon the public road. He submits that the Petitioners themselves gave an undertaking before this

Court in W.P. No.18300/2022 that the encroachment would be removed. Having made such an undertaking before this Court, the Petitioners cannot now turn around and contend that no encroachment exists.

18.19. The survey report submitted by the ADLR pursuant to the directions of this Court clearly identifies the encroachment in colour-coded portions on the map, quantifying the encroachment as approximately ten feet in one portion, three-fourths of a gunta in another portion, and one-fourth of a gunta in yet another portion. These findings conclusively establish the existence of encroachment on the public road.

18.20. Learned counsel relies upon the decision of the Hon'ble Supreme Court in Diamond and Gem Development Corporation and submits that a party cannot approbate and reprobate, i.e., blow hot and cold in the same breath. The Petitioners, having accepted the findings recorded in the earlier writ proceedings and having undertaken to remove the encroachment, are estopped from now

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challenging the very existence of the encroachment or the jurisdiction of the Panchayat authorities. On these grounds, he submits that the proceedings under the 2011 Rules are fully sustainable and the writ petition deserves to be dismissed.

18.21. Sri. M.S. Devaraju, learned counsel appearing for Respondent Nos.1 to 3, submits that the Petitioners have failed to produce any legally acceptable document of title to substantiate their claim of ownership over the subject property. Except for making a bare assertion that the property is ancestral in nature, the Petitioners have not placed on record any registered title deed, partition deed, grant order, mutation entry, or other legally

recognised document evidencing the origin of their ownership. In the absence of such foundational title documents, the claim of the Petitioners to be absolute owners cannot be accepted.

18.22. Sri. M.S. Devaraju further submits that the Khatha certificates, assessment extracts, and demand register entries relied upon by the

Petitioners are merely fiscal records prepared for the purpose of assessment and collection of property tax, and do not confer or recognise ownership over immovable property. It is a well-settled principle that Khatha entries cannot be equated with title documents. The Khatha relied upon by the Petitioners appears to have been issued without any foundational title documents being produced before the Panchayat authorities.

18.23. He submits that the material placed on record clearly establishes that the Petitioners have constructed a cattle shed on a portion of the public road, thereby obstructing the free use of the road by the villagers and other members of the public. The existence of the encroachment has been established through the survey and inspection reports, including the report of the ADLR submitted pursuant to the directions of this Court.

18.24. The Panchayat authorities have initiated proceedings strictly in accordance with the 2011 Rules and in compliance with the directions of this Court in W.P. No.18300/2022.

The actions taken by the authorities pursuant to such directions cannot be characterised as arbitrary or illegal. The writ petition is devoid of merit and has been filed only to prevent the removal of the encroachment made by the Petitioners on the public road.

18.25. Sri. Boppanna Belliyappa, learned Government Advocate appearing for Respondent Nos.5 and 6 (the Tahsildar and the ADLR, Mandya Taluk), has not advanced any separate and independent submissions in opposition to the Petitioners' case. He has adopted the submissions made by the other respondents and has submitted that the authorities have acted in accordance with their statutory mandate. The ADLR submitted the inspection report pursuant to the directions of this Court in W.P. No.18300/2022 after conducting a physical inspection of the subject property, and the said report forms part of the record before this Court.

18.26. This Court has carefully considered the submissions of all the learned counsel and has examined the material placed on record,

including the impugned orders, the inspection reports, the Court Commissioner's report, the Khatha documents, and the relevant statutory provisions. The primary question that falls for consideration under this Point is whether the proceedings initiated by the Panchayat authorities under the 2011 Rules, culminating in the order dated 13.02.2025 passed by Respondent No.2 directing removal of the alleged encroachment, are sustainable in law.

18.27. A plain and careful reading of Rule 3 of the 2011 Rules reveals that the power of the Panchayat Development Officer or Village Accountant under the 2011 Rules is triggered

only when it appears to him that a person who is not duly authorised has caused obstruction or encroachment upon -- (a) Gram Panchayat or Poramboke land; (b) public street, place, waste land, ponds, tanks, playground, parks, public utility lands, cremation grounds, or graveyards; (c) any open drain, gutter, sewer, or aqueduct in such street or place; or (d) "any open site not being private property." The Rule is explicit in its exclusion of private property from its purview by using the phrase "not being private

property." This means that if the land in question is, or is genuinely claimed to be, private property, the 2011 Rules have no application.

18.28. In the present case, the Petitioners have raised a bona fide and genuine claim of private ownership over the subject land. Petitioner No.1 holds an E-Khatha bearing No.152100404801220007, issued by the competent Panchayat authority, in respect of a property identified as Gramathana No.6/6 at Kodagahalli Village. Petitioner No.2 similarly claims to be the owner of the adjacent property, which is described as ancestral property that has devolved upon him through inheritance from his grandfather, Patel Javaregowda, and father. The demand register and Khatha certificate issued by the Panchayat itself record the northern boundary of the Petitioners' properties as a road, which the Petitioners contend establishes that their lands extend up to the road.

18.29. The Court Commissioner, appointed by this Court by order dated 30.10.2025, has

confirmed in his report dated 04.11.2025 that the property bearing Gramathana No.6/76, measuring 91.87 square metres, comprises a Mangalore-tiled house, an AC sheet structure, and a goat/cattle shed, and that the distance between the cattle shed and the northern road is approximately eleven feet. This observation, made by a neutral court-appointed authority, lends credence to the Petitioners' claim that their structures are situate within their property and at a distance from the road.

18.30. Critically, the Panchayat Development Officer (Respondent No.3), in his Report dated 20.03.2023, specifically recorded that the disputed land does not fall within the jurisdiction of the Grama Panchayat and that complaints relating to such lands within gramathana limits cannot be treated as encroachments upon Government land. This report bears very great significance. Rule 3 of the 2011 Rules designates the Panchayat Development Officer as the authority who must form an opinion that a person has encroached upon Gram Panchayat or public land before initiating proceedings.

18.31. When the Panchayat Development Officer himself, after examining the matter, recorded the absence of the very jurisdictional fact required for invoking the 2011 Rules, the Executive Officer (Respondent No.2) ought to have first addressed and either overruled or accepted this finding before proceeding any further. The impugned order dated 13.02.2025 does not even refer to the Report dated 20.03.2023, let alone offer any reasoned basis for departing from the conclusions recorded therein. This silence is itself a serious infirmity in the impugned order.

18.32. In Jagmittar Sain Bhagat the Hon'ble Supreme Court, has laid down the following foundational principles of law regarding jurisdiction:

18.32.1. Conferment of jurisdiction is a legislative function. Jurisdiction can neither be conferred by the consent of the parties nor by the order of a superior court. An order passed by an authority having no jurisdiction amounts to a nullity, and

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such a defect goes to the root of the cause.

18.32.2. If a court or tribunal inherently lacks jurisdiction, the acquiescence of a party cannot perpetuate such lack of jurisdiction. The doctrine of waiver also does not apply in such cases.

18.32.3. A decree or order without jurisdiction is coram non judice. The finding of such a court or tribunal becomes irrelevant and unenforceable once the forum is found to have no jurisdiction.

18.32.4. For assumption of jurisdiction by a court or tribunal, the existence of a jurisdictional fact is a condition precedent.

18.33. Applying the principle laid down in Jagmittar Sain Bhagat to the facts of the present case: The 2011 Rules vest jurisdiction in the Panchayat authorities only in cases where the land in question is Gram Panchayat, Poramboke, or public land, and is not private property. The existence of this jurisdictional

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fact, that the land is public/Panchayat property. is a condition precedent for the exercise of power under the 2011 Rules. In the present case, the Petitioners have asserted their private ownership and the Panchayat Development Officer himself has recorded that the land falls outside the Panchayat's jurisdiction. The respondents have not established that the land is, in fact, Panchayat or Government property through any proper adjudicatory process. In these circumstances, following the principle in Jagmittar Sain Bhagat, the proceedings under the 2011 Rules are without jurisdiction and the consequential orders directing removal of the alleged encroachment must be treated as nullities.

18.34. The decision of the coordinate bench of this court in Smt. Gowramma and Others is directly applicable to the facts of the present case on all fours. Just as in Smt. Gowramma (Single Bench), the Petitioners in the present case are asserting that they are in possession and enjoyment of the property on their own right since time immemorial, that there is no encroachment, and that the property does not

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belong to the Panchayat. In such circumstances, the authorities ought not to have invoked the summary procedure under Rule 3 of the 2011 Rules but ought to have initiated proceedings under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993 for proper adjudication of the competing claims.

18.35. The Division Bench of this Court, in a writ appeal arising from the single bench decision in

Smt. Gowramma, affirmed the position of law laid down by the Learned Single Judge. The Division Bench has held thatwhere encroachment of Panchayat property is sought to be removed, an inquiry must be held by the Assistant Commissioner with the participation of the Panchayat and other stakeholders, so that the Panchayat can produce essential material to vouch its title to the property. This inquiry is mandated under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993.

18.36. The Division Bench declined to accept the Panchayat's argument that the impugned order

was in conformity with Rule 3 of the 2011 Rules, and affirmed that the provisions of Rule 3 cannot be independently pressed into service when the very title to the land is disputed.

18.37. This judgment of the Division Bench is binding upon this Court and is directly applicable to the present case. The decision conclusively establishes that when the character of a land, whether it belongs to the Panchayat or to a private individual, is disputed, the Panchayat cannot resort to the summary procedure under the 2011 Rules without first establishing its title through Section 211 proceedings.

18.38. InThummala Krishna Raothe Hon'ble Supreme Court, held that he summary remedy for eviction can be resorted to by the Government only against persons in unauthorised occupation of property that is undisputedly the property of the Government. If there is a bona fide dispute regarding the title of the Government to any property, the Government cannot take a unilateral decision in its own favour that the property belongs to it, and on the basis of such decision take recourse

to the summary remedy for eviction. The summary remedy is not suited for adjudication of complicated questions of title.

18.39. The Hon'ble Supreme Court further held that facts which raise a bona fide dispute of title between the Government and the occupant must be adjudicated upon by the ordinary courts of law. The duration of occupation is relevant in the sense that a person who is in occupation of a property openly for an appreciable length of time can be taken, prima facie, to have a bona fide claim to the property requiring an impartial adjudication.

18.40. The ratio of Thummala Krishna Rao, though arising in the context of summary eviction from Government property under a different statute, enunciates a principle of universal application: that summary proceedings for removal of encroachments are not available when the title to the land is bona fide disputed. This principle is squarely applicable to proceedings under the 2011 Rules in the present case. The Petitioners have been in possession of their ancestral properties for over eighty years. Their claim to

the property is not frivolous or concocted, it is supported by Khatha certificates and demand register entries issued by the Panchayat itself. The existence of a pending civil suit (O.S. No.210/2022) in which the civil court has granted a temporary injunction in the Petitioners' favour further underscores the genuineness of their claim. In these circumstances, the Panchayat authorities could

not have unilaterally decided that the land belongs to the Panchayat and proceeded to remove the alleged encroachment through summary proceedings.

18.41. In M. Sankaranarayanan the Hon'ble Supreme Court, has held that the statutory provision considered in that case applies only to public roads, streets, lanes, and such lands as are not the property of individuals, or of an aggregate of persons legally capable of holding property. A dispute of title between the State and individuals cannot be decided through proceedings under such a provision.

18.42. The Hon'ble Supreme Court held that the proceedings under the provision in question

were without jurisdiction, since the title to the land was in dispute.

18.43. The principle in M. Sankaranarayanan is directly analogous. Rule 3 of the 2011 Rules, like the provision considered in M. Sankaranarayanan, applies only to public/Panchayat property and expressly excludes private property. Once a genuine claim of individual private ownership is raised, the summary power under Rule 3 is unavailable. The authorities in the present case have wrongly invoked the 2011 Rules in disregard of this basic principle.

18.44. Sri. Vishwanath N. has strongly urged that the proceedings under the 2011 Rules are sustainable because they were initiated pursuant to and in compliance with the directions of this Court in W.P. No.18300/2022. This submission requires careful examination.

18.45. This Court, by order dated 04.07.2024 in W.P. No.18300/2022, directed the Panchayat Development Officer to consider the representation submitted by Respondent No.4

under Sub-Rule (3) of Rule 3 of the 2011 Rules

and forward it to the Executive Officer within fifteen days. The Executive Officer was directed to consider the representation after issuing notice to the parties under Rule 4 of the 2011 Rules and to "pass appropriate orders in accordance with law."

18.46. The expression "in accordance with law" appearing in the direction of this Court is of crucial significance. This Court, while directing the authorities to act, did not and could not have intended to dispense with the mandatory legal requirements governing the exercise of power under the 2011 Rules. The phrase "in accordance with law" necessarily incorporates the entire body of law applicable to the situation, including the requirement that the land must be established to be Panchayat/Government property before encroachment removal proceedings can proceed, and including the requirement to initiate proceedings under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993 when the character of the land is disputed.

18.47. As the Hon'ble Supreme Court has held in Jagmittar Sain Bhagat, jurisdiction is a legislative function and cannot be conferred even by a superior court. A direction by this Court to an authority to exercise its statutory power cannot enlarge the scope of that statutory power or confer jurisdiction that the

statute itself does not vest in the authority. If Rule 3 of the 2011 Rules does not apply to private property or disputed land, a direction of this Court to consider a representation under Rule 3 does not make Rule 3 applicable to such property.

18.48. Furthermore, the direction in W.P. No.18300/2022 was issued at the instance of Respondent No.4 who made a representation alleging encroachment. The court's direction was to examine the representation and take action in accordance with law. Acting "in accordance with law" in a situation where the ownership of the land is disputed would require the authorities to follow the Section 211 route, as held by the Division Bench in Chief Executive Officer Vs. Smt. Gowramma. The

direction cannot be read as an authorisation to bypass the mandatory statutory scheme.

18.49. On the submission of Sri. M.S. Devaraju regarding the absence of title documents in the Petitioners' hands: The absence of a registered title deed does not automatically establish that the land belongs to the Panchayat or the Government. It is well recognised that in rural India, particularly in respect of ancestral properties, ownership is often evidenced through continuous possession, revenue records, Khatha entries, and other documentary material, rather than registered deeds. The Petitioners have produced Khatha certificates and demand register entries in their favour, issued by the Panchayat itself. These documents are not conclusive proof of title but they are prima facie evidence of long-standing recognised possession. The question of whether these documents are sufficient to establish title is precisely the kind of question that must be adjudicated through Section 211 proceedings or through civil proceedings, it cannot be decided unilaterally by the Panchayat through summary

encroachment removal proceedings.

18.50. This Court also notes that the Civil Court (II Additional Civil Judge and JMFC, Mandya) has granted a temporary injunction in favour of the Petitioners in O.S. No.210/2022, restraining Respondent No.4 from interfering with the Petitioners' possession. The existence of this injunction order, granted by a competent civil court after examining the pleadings and materials, is a strong indicator that the Petitioners' claim to possession and ownership is not frivolous and that a prima facie case exists in their favour. The Panchayat authorities have entirely disregarded this civil court order and proceeded to pass orders that directly conflict with it. The impugned orders, to the extent that they direct removal of structures claimed to be within the Petitioners' property, are prima facie in conflict with the civil court's injunction order.

18.51. In this context, it is also necessary to address the submission of Sri. Vishwanath N that Respondent No.4 had filed an earlier civil suit in O.S. No.468/2020 before the competent civil court, in which an order of injunction had been obtained against the Petitioners. The existence

of O.S. No.468/2020 and the injunction obtained therein was pressed into service to contend that the encroachment by the Petitioners was already judicially recognised in some form. This submission is not acceptable for the following reasons:

18.51.1. The nature, scope, and present status of the injunction in O.S. No.468/2020 are not elaborated upon in the submissions placed before this Court. Whether the injunction in O.S. No.468/2020 relates to the same property and the same dispute, and whether it is still in force, is not clear from the material before this Court.

18.51.2. More importantly, even if an injunction was granted in O.S. No.468/2020 at some prior point of time, the subsequent filing and pendency of O.S. No.210/2022 by the Petitioners, in which the civil court has granted a temporary injunction in favour of the Petitioners by order dated 14.03.2022, indicates that the civil

dispute between the parties is far from settled and remains actively litigated before the competent civil court. A temporary injunction, by its very nature, is a provisional and interlocutory remedy. The grant of such a remedy in the Petitioners' favour reflects only that the civil court found a prima facie case in their favour at that stage. Both civil suits must be decided on their own merits before any final conclusion regarding title and possession can be drawn.

18.51.3. The co-existence of two sets of injunction orders, one in O.S. No.468/2020 (in R4's favour) and one in O.S. No.210/2022 (in Petitioners' favour) if anything, underscores the genuinely contentious nature of the civil dispute between the parties. It reinforces the conclusion that the dispute between the

Petitioners and Respondent No.4 is a bona fide civil dispute requiring adjudication through the appropriate civil forum, and is not a clear-cut case of unauthorised encroachment on

Government land that would justify resort to summary proceedings under the 2011 Rules.

18.52. This Court also addresses the allegation raised by Sri. Vishwanath N. that Petitioner No.2 was formerly a member of the Gram Panchayat and that he misused his position to create Panchayat records in the name of Petitioner No.1 (his mother) to legitimise the alleged encroachment. This is a serious allegation, but it suffers from a fundamental infirmity: it is an allegation of fraud or mala fides, which must be specifically pleaded, established with evidence, and proved through proper adjudicatory proceedings. As the Hon'ble Supreme Court held in M. Sankaranarayanan, fraud must be pleaded and proved; it cannot be presumed. The allegation that Petitioner No.2 misused his Panchayat membership cannot be accepted as an established fact merely on the basis of a complaint by Respondent No.4. It is an allegation that must be adjudicated through the appropriate legal proceedings, either through criminal prosecution, civil fraud proceedings, or through the Section 211 inquiry, and cannot

serve as a justification for summary removal of the Petitioners' structures under the 2011

Rules.

18.53. I answer Point No. (i) by holding that the proceedings initiated by the Panchayat authorities under the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011, directing removal of the alleged encroachment by the Petitioners, are NOT SUSTAINABLE IN LAW. The said proceedings suffer from a fundamental jurisdictional infirmity in that the precondition for invoking the 2011 Rules, namely, that the subject land must be Government/Panchayat property and not private property, has not been established through any proper adjudicatory process. Rule 3 itself excludes private property from its ambit. The Panchayat Development Officer's own report dated 20.03.2023 recorded the absence of Panchayat jurisdiction. The Division Bench decision in Smt. Gowramma and the decisions of the Hon'ble Supreme Court in Thummala Krishna Rao, M. Sankaranarayanan, and Jagmittar Sain Bhagat all confirm that the summary powers

under such Rules cannot be exercised when title to the land is in dispute.

19. Answer to Point No. (ii):Whether, in the facts of the present case, the authorities could have exercised powers under the 2011 Rules, or whether the dispute raised by the petitioners regarding ownership and possession of the property required adjudication under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993?

19.1. Sri. K.N. Nithish, learned counsel for the Petitioners, submits that even assuming that the Panchayat authorities were justified in examining the complaint of Respondent No.4, the method adopted by them was legally impermissible. The correct and mandatory procedure to be followed, when the ownership

and character of a property is disputed between the Panchayat and a private claimant, is to initiate proceedings under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993.

19.2. Learned counsel submits that Section 211 of the 1993 Act specifically provides the statutory mechanism for the adjudication of competing claims between the Grama Panchayat and any individual relating to any property or any right

over property. The said provision vests jurisdiction in the Assistant Commissioner to decide such claims after conducting an inquiry with due notice to all concerned parties. Only through such a process can the question of whether a particular land belongs to the Panchayat or to a private individual be properly and legally determined.

19.3. Sri. K.N. Nithish submits that in the present case, the Petitioners have consistently and categorically disputed that the subject land belongs to the Panchayat or to the Government. In this factual context, the Panchayat authorities were duty-bound to initiate proceedings under Section 211 of the 1993 Act before the Assistant Commissioner, to get the competing claims adjudicated. By choosing to bypass Section 211 and instead directly invoking the 2011 Rules for summary removal of the alleged encroachment, the authorities have violated the statutory scheme.

19.4. Learned counsel draws the Court's attention to the Single Bench decision of this Court in Smt. Gowramma, wherein this Court held that

when the alleged encroacher disputes Panchayat ownership, the authorities ought to have initiated proceedings under Section 211 of the Act first, and only after determining the question of title could have proceeded to take any further action.

19.5. He further draws the attention of the Court to the Division Bench decision of this Court in Smt. Gowramma wherein the Division Bench affirmed the above position and held that Section 211 of the 1993 Act is the proper mechanism for adjudicating claims to property between the Panchayat and private individuals. The Division Bench held that the Panchayat must first establish its title through Section 211 proceedings, and that Rule 3 of the 2011 Rules cannot be independently invoked when the title to the land is disputed.

19.6. Sri. K.N. Nithish submits that the submission of Respondent No.4 that Section 211 does not apply because proceedings were initiated pursuant to this Court's directions in W.P. No.18300/2022, is wholly misconceived. This Court's direction to "pass appropriate orders in

accordance with law" necessarily required the authorities to follow Section 211 when the ownership was disputed. The Court's direction cannot be construed as authorising the authorities to bypass mandatory statutory requirements. Moreover, jurisdiction is a legislative function and cannot be conferred by a court order, as held in Jagmittar Sain Bhagat.

19.7. The submission of Respondent No.4 that Section 211 has no application because the property in question is gramathana land reserved for public use is also not correct. The

character of the land, whether it is gramathana/public land or private land, is itself the very question in dispute. It cannot be assumed as established when the Petitioners are denying it. Precisely because this is a disputed question, the Section 211 route must be taken.

19.8. Admittedly, no proceedings have been initiated under Section 211 of the 1993 Act in the present case. In the absence of any determination by the Assistant Commissioner under Section 211, the foundational question of

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whether the land belongs to the Panchayat or to the Petitioners has not been resolved. The Panchayat authorities cannot proceed to direct removal of encroachment when this foundational question remains undecided.

19.9. Sri. Vishwanath N., learned counsel for Respondent No.4, submits that Section 211 of the 1993 Act has no application to the facts of the present case. According to him, Section 211 contemplates a situation where a dispute arises regarding title to property between the Grama Panchayat and a private individual, and in such a situation the matter is required to be adjudicated by the Assistant Commissioner. However, in the present case, no such dispute of title arises between the Panchayat and the Petitioners, inasmuch as the property in question is gramathana land reserved for public use as a road, and the Petitioners have merely encroached upon the said land by putting up a temporary structure.

19.10. He submits that the proceedings under the 2011 Rules were initiated not independently by the Panchayat authorities but pursuant to the

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specific directions issued by this Court in W.P. No.18300/2022, which directed the PDO to consider the encroachment representation under Rule 3(3). When such a direction had already been issued by this Court to examine the alleged encroachment under the 2011 Rules, the invocation of Section 211 by the Petitioners is an attempt to circumvent the directions of this Court.

19.11. Learned counsel further submits that Section 211 requires a survey of "lands other than lands ordinarily used for purposes of agriculture only" to have been extended to the village. Since the disputed land is gramathana land (a non-agricultural land within the village habitation area), Section 211 would technically apply. However, in the present case, since the Court's direction already authorised the 2011 Rules procedure, there was no necessity to resort to Section 211.

19.12. By relying on Section 211 he submits that this provision presupposes a formal dispute about title to property; in the present case, the land is gramathana land and the Panchayat has

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never claimed ownership over what the Petitioners are claiming. The ownership question is not in dispute, the Panchayat is not claiming ownership over the Petitioners' house; the Panchayat is only claiming that the Petitioners have encroached upon the gramathana/public road land.

19.13. Sri. M.S. Devaraju, learned counsel for Respondent Nos.1 to 3, submits that the proceedings under the 2011 Rules were

initiated in compliance with the directions of this Court. The Panchayat authorities acted in good faith and in accordance with the directions of this Court. In these circumstances, the invocation of Section 211 as a ground of challenge is without merit.

19.14. The material placed on record, including the survey reports and the ADLR report, establishes that there is a clear encroachment on the public road and gramathana land. The Panchayat authorities, as the custodians of public land, had both the duty and the jurisdiction to take action under the 2011 Rules for removal of such encroachment. Section 211 proceedings

are required only in cases of genuine disputed title between the Panchayat and the individual, not in cases of clear encroachment on public land.

19.15. Sri. Boppanna Belliyappa, learned Government Advocate appearing for Respondent Nos.5 and 6, has adopted the submissions advanced by Sri. M.S. Devaraju for Respondents 1 to 3. He has not advanced any independent submission on the question of whether Section 211 proceedings were required. He submits that the concerned government authorities, the Tahsildar (R5) and the ADLR (R6), discharged their statutory functions in accordance with the directions of this Court and in compliance with their respective statutory mandates. The ADLR submitted the survey report pursuant to the specific direction of this Court, and the same is on record before this Court.

19.16. The question under this Point is whether, in the circumstances of the present case, the authorities could have exercised powers under the 2011 Rules, or whether the dispute raised by the Petitioners regarding ownership and

possession required prior adjudication under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993. For this purpose, it is necessary to examine Section 211 of the 1993 Act.

19.17. Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993 reads as follows:

"211. Decision of claims to property by or against Grama Panchayat.- (1) In any village to which a survey of lands other than lands ordinarily used for the purposes of agriculture only has been or shall be extended under any law for the time being in force, where any property or any right in or over any property is claimed by or on behalf of the Grama Panchayat, or by any person as against the Grama Panchayat, it shall be lawful for the Assistant Commissioner after enquiry of which due notice has been given, to pass an order deciding the claims.

(2) Any person aggrieved by an order made under sub-section (1) may appeal to the Deputy Commissioner and the decision of the Deputy Commissioner shall be final.

(3) Any person shall be deemed to have had notice of any enquiry or order under this section if notice has been given in the prescribed manner."

19.18. Section 211 of the 1993 Act, as extracted above, contains the following essential elements:

19.18.1. The provision applies to any village to which a survey of non-agricultural lands has been extended.

19.18.2. The trigger for its application is the existence of a claim, by or on behalf of the Grama Panchayat, or by any person as against the Grama Panchayat, in respect of any property or any right in or over any property.

19.18.3. When such a claim exists, the Assistant Commissioner is empowered, after an inquiry with due notice to all concerned, to pass an order deciding the claims.

19.18.4. The provision contains an appellate remedy, an aggrieved party may appeal to the Deputy Commissioner.

19.19. Reading Section 211 carefully, it is clear that the said provision is specifically designed for the adjudication of competing claims regarding property between the Grama Panchayat and private individuals. The key language is: "where any property or any right in or over any property is claimed by or on behalf of the Grama Panchayat, or by any person as against the Grama Panchayat." This language is wide enough to encompass a situation where a private individual claims ownership over land

that the Grama Panchayat asserts is its property. The present case falls squarely within this description: the Petitioners claim that the subject land (or at least the portion in front of their house) is their private property, while the Panchayat (acting on the complaint of Respondent No.4) asserts that it is gramathana/public land.

19.20. The Division Bench of this Court in Smt. Gowramma has given an authoritative interpretation of the inter-relationship between Rule 3 of the 2011 Rules and Section 211 of the 1993 Act. The Division Bench, in paragraph 3 of its judgment, held that where the Panchayat

claims that a particular property belongs to it and alleges encroachment by a private party, the Panchayat must produce "the essential material to vouch its title to the property" through the Section 211 inquiry conducted by the Assistant Commissioner. The Division Bench specifically held that this inquiry is a prerequisite before any encroachment removal can be directed. The Division Bench also held that the provisions of Rule 3 of the 2011 Rules

"cannot be invoked independently when the very title to the land is disputed."

19.21. The Single Bench decision in Smt. Gowramma is to the same effect. The Court held that Rule 3 "presupposes Obstruction And Encroachment of the Panchayat property" and that "it also presupposes there being no dispute by the encroacher." When the alleged encroacher disputes the Panchayat's ownership, the appropriate course is Section 211 proceedings. These decisions are binding upon this Court. Their ratio squarely applies to the present case.

19.22. The submission of Respondent No.4 that Section 211 has no application because proceedings were initiated pursuant to this Court's directions in W.P. No.18300/2022, has already been considered under Point (i) above. For the same reasons as stated therein, this submission is not accepted. The Court's direction to act "in accordance with law" necessarily means following the procedure mandated by law, including Section 211 when the ownership is disputed. The Court's direction

cannot override the statutory scheme or confer jurisdiction that the statute does not provide.

19.23. The submission of Sri. Vishwanath N. that there is no genuine title dispute because the land is clearly gramathana/public land and the Panchayat is not claiming ownership over the Petitioners' house, it is only claiming that the Petitioners have encroached on the public road, is a circular argument. Whether the land adjacent to the Petitioners' structures is the Petitioners' private property (as they claim, based on their Khatha showing the road as the northern boundary) or is gramathana/public road land (as the respondents claim), is itselfthe disputed question that requires adjudication. The determination of this question cannot be made unilaterally by the Panchayat through summary encroachment proceedings. It requires a proper adjudicatory process with due notice and opportunity to all parties.

19.24. This Court must specifically address the submission of Sri. Vishwanath N. that Section 211 cannot apply because it requires "a survey of lands other than lands ordinarily used for

purposes of agriculture only" to have been extended to the village. Sri. Vishwanath N. argues that if this precondition is not met, Section 211 proceedings are not available. This Court rejects this submission for the following reasons:

19.24.1. The subject land is admittedly a gramathana land/site, a non-agricultural land within the village habitation area. A gramathana is, by definition, "land other than land ordinarily used for the purposes of agriculture only." Section 211 is specifically designed for village lands other than agricultural lands. The

gramathana land in a surveyed village would clearly fall within the scope of Section 211 proceedings.

19.24.2. More fundamentally, if the respondents' position is that Section 211 cannot apply because the survey precondition has not been met, then the very same logic would apply to foreclose reliance on the 2011 Rules as well, because the 2011 Rules (read with the principal Act)

cannot apply to lands that are outside the Panchayat's jurisdiction.

19.24.3. The respondents cannot simultaneously argue that Section 211 does not apply (because of the survey precondition) and that the 2011 Rules do apply. These are mutually contradictory positions.

19.24.4. In any event, it is settled law that if an authority claims that certain land belongs to the Panchayat or is public property, it is for that authority to establish both the factual and jurisdictional foundation for its claim. The Panchayat cannot selectively invoke summary powers under the 2011 Rules while simultaneously excluding the applicability of Section 211 proceedings that would provide the only proper mechanism for adjudicating its ownership claim.

19.24.5. In the present case, the respondents have not placed any material before this Court to establish that the survey precondition under Section 211 is indeed

not satisfied. The submission remains a bare assertion.

19.25. The Court further notes that admittedly no proceedings have been initiated under Section 211 of the 1993 Act. The Assistant Commissioner has conducted no inquiry under Section 211. There is no order of the Assistant Commissioner under Section 211 determining the competing claims. In the complete absence of any Section 211 proceedings, the Panchayat authorities were not in a position to direct removal of the alleged encroachment under the 2011 Rules, since the foundational determination of the character of the land had not been made.

19.26. It is also relevant to note that Respondent No.4 (Sri. K.C. Shivaramu) is a private individual who has raised a complaint against the Petitioners. He is not the Grama Panchayat or the Government. The dispute, at its core, is a dispute between two sets of private individuals regarding the boundaries of their respective properties. The involvement of the Panchayat authorities in this dispute (through the

complaint mechanism under Rule 3 of the 2011 Rules) does not transform this private boundary dispute into a case of clear encroachment on public property. The character of the land must be determined first, and that determination can only be made through the Section 211 route.

19.27. I answer point no. (ii) by holding that in the facts of the present case, the authorities could NOT have exercised powers under the 2011 Rules without first adjudicating the dispute relating to ownership and possession of the

property through proceedings under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993. Since no such Section 211 proceedings were initiated, the exercise of powers under the 2011 Rules and the consequential orders are without proper legal foundation.

20. Answer to Point No. (iii):Whether the material placed on record, including the survey reports, inspection reports and the Court Commissioner's report, establish that the petitioners have encroached upon gramathana land or a public road?

20.1. Sri. K.N. Nithish, learned counsel for the Petitioners, submits that the material placed on

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record does not establish any encroachment upon gramathana land or a public road. His primary submission is that the Khatha certificate and the demand register, both issued by the Panchayat itself, record the northern boundary of the Petitioners' properties as a road. This clearly indicates that the Petitioners' properties extend up to the road, and there is no intervening strip of land between the Petitioners' properties and the road that can be claimed to be Government or Panchayat property.

20.2. He submits that the initial allegation made by Respondent No.4 was that the Petitioners had encroached upon the road itself. However, the survey report produced by the ADLR established that the road continues to exist in its original form and that there has been no encroachment upon the road itself. Having accepted that the road itself has not been encroached upon, it is entirely contradictory for the respondents to now contend that the land on this side of the road constitutes gramathana land or Government land that has been

encroached upon. These two positions are mutually exclusive and cannot stand together.

20.3. Sri. K.N. Nithish submits that the spot inspection report relied upon by the Panchayat authorities was conducted without prior notice to the Petitioners and without affording them any opportunity to participate or to present their case. The Petitioners were not informed of the date of the inspection in advance and were not afforded the opportunity to take the assistance of their advocate or a private surveyor. A report prepared without notice and participation of the affected party cannot be relied upon as a foundation for adverse orders.

20.4. Learned counsel further submits that the Court Commissioner's report dated 04.11.2025, submitted pursuant to the order of this Court dated 30.10.2025, is the most reliable and neutral piece of evidence on record regarding the actual physical state of the subject property. The Commissioner, after visiting the property on 01.11.2025, recorded that the distance between the goat/cattle shed and the road on the northern side is approximately

eleven feet. This clearly establishes that the cattle shed is not on the road, nor does it encroach upon the road or the land immediately adjacent to the road. The eleven-foot gap between the shed and the road is consistent with the Petitioners' case that their property extends up to the road and that the structures are within their property.

20.5. He points out that the ADLR report, even if accepted, identifies encroachment in various colour-coded portions. However, the Petitioners contend that those portions fall within their private property. The Petitioners have filed objections to the ADLR report pointing out that no survey was conducted in their presence and that the contents of the report are substantially similar to the earlier report submitted in W.P. No.18300/2022. The report, which bears the writ petition number of W.P. No.18300/2022 even though it was submitted in the present proceedings, appears to have been prepared without a fresh inspection of the property.

20.6. Sri. K.N. Nithish submits that in matters relating to identification of property and its

boundaries, boundaries as described in title documents (Khatha, demand register entries) always prevail over measurements or survey numbers. The northern boundary of the Petitioners' properties, as recorded in the Khatha and demand register, is the road itself. The Petitioners' claim is that they have been in continuous possession of the land extending up to the road, and that the cattle shed is a structure constructed within their property for housing cattle. The mere fact that a portion of the land appears vacant on a map cannot lead to the presumption that it is Government or Panchayat land.

20.7. He submits that in any event, the question of encroachment cannot be determined in summary encroachment proceedings under the 2011 Rules when the very ownership of the land is in dispute. This argument, already addressed under Points (i) and (ii) above, applies with equal force to this Point.

20.8. Sri. Vishwanath N. submits that the encroachment by the Petitioners has been

conclusively established through multiple

reports. The ADLR survey report submitted pursuant to the directions of this Court in W.P. No.18300/2022 clearly identifies encroachment in colour-coded portions: an encroachment of approximately ten feet in the orange-marked area, encroachment of about three-fourths of a gunta in the green-marked area, and encroachment of about one-fourth of a gunta in the pink-marked area. The report also identifies areas marked in green, blue, and brown as part of the public road that has been encroached upon.

20.9. He relies upon the order dated 17.11.2023 of this Court in W.P. No.18300/2022, in which this Court, after considering the ADLR report, recorded that the Petitioners (who were Respondent Nos.9 and 10 in that writ petition) had encroached upon the public road. He submits that this finding by this Court itself establishes the encroachment.

20.10. Further, Sri. Vishwanath N. submits that when the encroachment was found, the Petitioners themselves gave an undertaking before this Court in W.P. No.18300/2022 that they would

remove the encroachment. The very fact that the Petitioners gave such an undertaking is a strong circumstance indicating that they themselves acknowledged the encroachment.

20.11. Regarding the Court Commissioner's report,

Sri. Vishwanath N. submits that the Commissioner's report shows the existence of a goat/cattle shed measuring approximately 735.30 square feet on the subject property, which is far in excess of the area covered by the Khatha (Gramathana No.6/76, 91.87 sq.m.). The cattle shed itself is a large structure and appears to extend beyond the boundaries of the Khatha property. The eleven-foot gap between the shed and the road mentioned in the Commissioner's report relates to one part of the shed, and does not mean that the entire shed is within the Petitioners' property.

20.12. Sri. M.S. Devaraju submits that the survey and inspection reports clearly establish the existence of encroachment. The reports demarcate the encroached portions with colour markings and identify the exact extent of the

encroachment. The Panchayat authorities, upon examining the reports and conducting their own proceedings, found that the Petitioners have constructed a structure on the public road area. The encroachment is a matter of established fact based on official inspection.

20.13. He further submits that the cattle shed constructed by the Petitioners on the gramathana/public road area is an obstruction to the free use of the road by the villagers and the public. The removal of such an obstruction is not only permissible but mandatory under the 2011 Rules.

20.14. Under this Point, the Court is required to examine whether the material on record, including the survey reports, the ADLR inspection report, and the Court Commissioner's report, establishes that the Petitioners have encroached upon gramathana land or a public road. This Court has carefully examined all the material placed on record.

20.15. The Court Commissioner's report dated 04.11.2025 is the most significant and reliable piece of evidence on the factual position. The

Court Commissioner was appointed by this Court by order dated 30.10.2025 specifically to resolve the dispute arising from the rival contentions regarding the correctness of the ADLR survey report. The Commissioner is a neutral officer appointed by this Court, and the Commissioner's observations are therefore untainted by the adversarial interests of any party.

20.16. The Court Commissioner visited the property bearing Gramathana No.6/76, measuring 91.87 square metres, at Kodagahalli Village, Basaralu Grama Panchayat, Mandya District, on 01.11.2025 at about 11:15 a.m. The Commissioner recorded the following observations:

20.16.1. The property consists of a Mangalore tiled house measuring approximately 1,652 square feet.

20.16.2. A green-coloured AC sheet structure measuring approximately 698.22 square feet.

20.16.3. A goat/cattle shed measuring approximately 735.30 square feet.

20.16.4. The goat/cattle shed measures about

31.6 feet on the western side and narrows towards the eastern side to about 19.06 feet (excluding the drain).

20.16.5. Critically and most importantly, the distance between the goat/cattle shed and the road situated on the northern side is approximately ELEVEN FEET.

20.16.6. Adjacent to the shed, there exists a drain measuring about one and a half feet in width.

20.16.7. The Commissioner produced photographs, a sketch, a Google map, and a screenshot from the Dishank application in support of the observations.

20.17. The observation of the Court Commissioner that the distance between the cattle shed and the northern road is approximately eleven feet is a crucial finding. If the cattle shed is eleven feet away from the road, it means the cattle

shed is NOT on the road and does NOT encroach upon the road. The road exists in its original form, and there is a gap of eleven feet between the shed and the road. This observation is consistent with the Petitioners' case that the road continues to exist undisturbed and that the structures are within the Petitioners' property.

20.18. The critical question, however, is what is the character of the land that lies within this eleven-foot gap between the cattle shed and the road. Is it part of the Petitioners' private property (as the Petitioners claim, on the basis that their Khatha shows the road as the northern boundary)? Or is it gramathana land or public road margin land (as the respondents claim)? The Court Commissioner's report does not answer this question, since that question

requires adjudication of title, which is precisely what Section 211 proceedings are meant to determine.

20.19. Inofar as the ADLR survey report, the Petitioners have raised serious objections to the ADLR report, contending that it was prepared

without their participation and that the contents are substantially similar to the earlier report in W.P. No.18300/2022. The ADLR report bearing the writ petition number of W.P. No.18300/2022 was apparently submitted in the present proceedings as well, which raises doubts about whether a fresh and independent inspection was conducted. The Petitioners have specifically stated that when the ADLR and other officials visited the property on 13.10.2025, Petitioner No.2 was indisposed and the officials were requested to inform the Petitioners in advance of the survey date, but no fresh survey was conducted and yet the report was submitted.

20.20. In view of the Petitioners' objections to the ADLR report and the appointment of the Court Commissioner specifically to examine the matter, the Court Commissioner's report must be treated as the more reliable and neutral piece of evidence on the factual position. The Court Commissioner's report does not establish any encroachment by the Petitioners upon the road itself. On the contrary, the eleven-foot gap

between the shed and the road supports the

Petitioners' position.

20.21. This Court also takes note of the fact that Respondent No.4 had filed a civil suit in O.S. No.468/2020 against the Petitioners, in which an injunction order was reportedly obtained. However, the Petitioners thereafter filed O.S. No.210/2022 and obtained an injunction in their favour by order dated 14.03.2022. The existence of these two civil suits, with injunctions operating on both sides at different points of time, does not assist the respondents in establishing that the alleged encroachment is clear and undisputed. If anything, it demonstrates that both parties have resorted to the civil court for vindication of their respective rights, which confirms that the dispute is genuinely civil in nature and requires adjudication before the competent civil court.

20.22. Regarding the submission of Sri. Vishwanath N. that this Court in W.P. No.18300/2022 recorded that the Petitioners had encroached upon the public road: The Court notes that the daily orders passed in interlocutory writ proceedings

represent the court's tentative assessment of the material before it at that stage and in that context, and are not final findings of fact. The matter was subsequently examined by the Court Commissioner appointed by this Court, whose report provides a more definitive picture of the on-ground situation. The Commissioner's observation that the shed is eleven feet from the road does not support the conclusion that the Petitioners have encroached upon the road itself.

20.23. The Court also notes that the total area of the Khatha property (Gramathana No.6/76) is 91.87 square metres, which is approximately 989 square feet. The Commissioner has found structures measuring 1,652 sq.ft. (house) + 698.22 sq.ft. (AC sheet structure) + 735.30

sq.ft. (cattle shed) = 3,085.52 sq.ft. in total on the site. This raises a question as to whether all these structures are within the 91.87 sq.m. (989 sq.ft.) Khatha property, or whether some of them spill over the Khatha boundaries. However, the resolution of this question, including the identification of exact boundaries and measurement of encroachment, if any, is

precisely the kind of fact-finding exercise that must be undertaken in Section 211 proceedings, and cannot be done in summary encroachment removal proceedings under the 2011 Rules.Furthermore whether boundaries prevail over measurements would also have to be considered appropriately.

20.24. Even on the basis of the ADLR survey report (which identifies encroachment in colour-coded portions), the question of whether the encroached areas belong to the Panchayat/Government or to the Petitioners remains undetermined. The ADLR report assumes that certain areas belong to the public road, but this assumption is itself the disputed question. The ADLR report cannot resolve the title question, only Section 211 proceedings before the Assistant Commissioner can do that.

20.25. I answer Point No. (iii) by holding that the material placed on record does NOT conclusively establish that the Petitioners have encroached upon gramathana land or a public road in the sense that would justify the exercise of powers under the 2011 Rules. The

Court Commissioner's report, which is the most neutral and reliable piece of evidence, shows that the cattle shed is eleven feet away from the northern road, indicating that the road itself has not been encroached upon. The question of whether the land between the structures and the road belongs to the Petitioners or to the Panchayat/Government is a disputed question of title that has not been adjudicated in any appropriate forum. In the absence of such adjudication, it cannot be held that the Petitioners have encroached upon gramathana land or a public road.

21. Answer to Point No. (iv):Whether the impugned order dated 13.02.2025 passed by respondent No.2 and the appellate order dated 30.07.2025 passed by respondent No.1 suffer from jurisdictional error, procedural irregularity or violation of the principles of natural justice?

21.1. Sri. K.N. Nithish submits that the impugned order dated 13.02.2025 passed by Respondent No.2 (the Executive Officer, Taluk Panchayat) suffers from multiple and fundamental infirmities.

21.2. The first infirmity is one of jurisdiction. The PDO's Report dated 20.03.2023 had

categorically recorded that the disputed land does not fall within the Grama Panchayat's jurisdiction. The Executive Officer, while passing the order dated 13.02.2025, did not advert to this finding, did not refer to the said report, and did not record any reasons for departing from the conclusion reached by the PDO. The impugned order has been passed without jurisdiction, in disregard of the clear finding recorded by the PDO about lack of Panchayat jurisdiction.

21.3. The second infirmity is one of procedural

irregularity. The proceedings under the 2011 Rules require the issuance of notice to the parties and the conduct of an inquiry before any order for removal of encroachment can be passed. However, in the present case, the spot inspection was conducted without prior notice to the Petitioners. The Petitioners were not informed in advance of the date and time of the spot inspection. They were not afforded any opportunity to remain present during the inspection or to present their case. The inspection report was prepared entirely behind the back of the Petitioners.

21.4. The third infirmity is the violation of the principles of natural justice. The impugned order dated 13.02.2025 was passed without conducting a proper spot inspection (since the Petitioners were not present), without holding any inquiry at which the Petitioners could present their case, and without recording any evidence from the parties. The order has been passed in complete disregard of the Petitioners' right to be heard.

21.5. The fourth infirmity is the failure of the Appellate Authority (Respondent No.1, the CEO, Zilla Panchayat) to address the jurisdictional objection raised by the Petitioners. In their appeal before Respondent No.1, the Petitioners specifically raised the jurisdictional issue, that the land does not fall within the Panchayat's jurisdiction and that Section 211 proceedings are required. However, the Appellate Authority, in its order dated 30.07.2025, dismissed the appeal without addressing this fundamental jurisdictional objection. The failure to address a specifically raised and legally substantial ground renders the appellate order legally infirm.

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21.6. He also submits that the Appellate Authority failed to take note of the civil court injunction in O.S. No.210/2022, which had restrained Respondent No.4 from interfering with the Petitioners' possession. The existence of this injunction was material to the consideration of the appeal.

21.7. Sri. Vishwanath N. submits that the authorities have conducted their proceedings in strict compliance with the 2011 Rules and in accordance with the directions of this Court. The Petitioners participated in the earlier proceedings in W.P. No.18300/2022. The survey reports and inspection reports were submitted pursuant to court directions. The Executive Officer passed the order dated 13.02.2025 after examining all the material. The Appellate Authority (Respondent No.1) considered the appeal and passed a reasoned order dismissing the same. The impugned orders do not call for any interference by this Court.

21.8. Regarding natural justice, he submits that the proceedings under the 2011 Rules are quasi-

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summary in nature and the opportunity to be heard was provided through the statutory notice procedure. The Petitioners did participate in the proceedings and had the opportunity to raise their objections. The Petitioners subsequently had a full-fledged hearing before the Appellate Authority. The principles of natural justice have been substantially complied with.

21.9. Sri. M.S. Devaraju submits that the impugned orders do not suffer from any jurisdictional

error, procedural irregularity, or violation of natural justice. The Panchayat authorities acted in accordance with the 2011 Rules and pursuant to the directions of this Court. The Executive Officer passed the impugned order after considering the survey report and other material. The Appellate Authority considered the appeal on merits and passed a reasoned order. The impugned orders are lawful, valid, and in furtherance of the statutory obligation of the Panchayat to remove encroachments from public property.

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21.10. Having considered the submissions of the learned counsel on all sides and having perused the impugned orders, this Court is of the opinion that the impugned orders suffer from serious infirmities, which are examined hereunder.

21.11. First, on jurisdictional error in the order dated 13.02.2025 (Respondent No.2):

21.11.1. As held while answering Points (i) and (ii) above, the proceedings under the 2011 Rules lack legal foundation because the character of the land is disputed and Section 211 proceedings have not been initiated. These findings apply with equal force to the present Point.

21.11.2. More specifically, the Panchayat Development Officer (Respondent No.3) had submitted a Report dated 20.03.2023 to the Executive Officer in which he specifically recorded that the disputed land does not fall within the jurisdiction of the Grama Panchayat and that the complaint cannot be treated as encroachment upon Government land.

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This Report constitutes a finding on a jurisdictional fact made by the very authority designated to form the initial opinion under Rule 3 of the 2011 Rules.

21.11.3. The Executive Officer, before passing the impugned order dated 13.02.2025, was duty-bound to examine this Report of the PDO and either record reasons for disagreeing with it or accept its findings. The impugned order dated 13.02.2025 does not reference the PDO's Report dated 20.03.2023 at all. The complete silence of the impugned order on this Report, which contained a finding adverse to the initiation of proceedings under the 2011 Rules, constitutes a fundamental failure on the part of the Executive Officer. The impugned order is thus a non-speaking order on the most critical jurisdictional issue.

21.11.4. An order passed by a quasi-judicial authority without considering material evidence on record, particularly evidence that goes to the very root of

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jurisdiction, is legally infirm and liable to be interfered with in writ jurisdiction.

21.12. Second, on violation of principles of natural justice in the proceedings leading to the impugned order:

21.12.1. The principles of natural justice, which are the minimal standards of procedural fairness required of any authority exercising quasi-judicial or

administrative powers affecting the rights of individuals, require that a person must be given adequate notice and opportunity to be heard before an adverse order is passed against him.

21.12.2. In the present case, the spot inspection that formed the basis of the encroachment removal proceedings was conducted without prior notice to the Petitioners. Sri. K.N. Nithish submits that when the ADLR and other officials visited the property on 13.10.2025 for conducting the inspection, the Petitioners were not informed in advance and requested the officials to fix a fresh

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date. No fresh survey was conducted, and yet a report bearing the writ petition number of W.P. No.18300/2022 was submitted. Such a procedure is clearly violative of the Petitioners' right to participate in the inspection and to present their case.

21.12.3. The right of an individual to be present during spot inspections that may adversely affect their property rights is a well-recognised facet of the principles of natural justice. Any report or finding based on an inspection conducted without adequate notice to the affected party is procedurally infirm and cannot be acted upon to the prejudice of that party.

21.12.4. Furthermore, the order dated 13.02.2025 passed by Respondent No.2 is stated to have been passed without conducting a proper spot inspection (as the inspection was disputed), without holding any formal inquiry, and without recording evidence from the parties. This

Court in its writ jurisdiction is empowered to interfere with orders passed in violation of the principles of natural justice, as the same constitutes an error of law affecting the rights of the Petitioners.

21.12.5. There is an additional procedural infirmity that must be noted. The direction issued by this Court in W.P. No.18300/2022 by order dated 04.07.2024 specifically required the Executive Officer to "consider the representation after issuing notice to the parties under Rule 4 of the 2011 Rules and pass appropriate orders in accordance with law." This Court specifically directed compliance with Rule 4 of the 2011 Rules, which is the provision governing the issuance of notice and holding of an inquiry before an order of removal can be passed.

21.12.6. Rule 4 of the Karnataka Panchayat Raj (Removal of Obstruction and Encroachment) Rules, 2011 prescribes

the procedure for removal of obstructions and encroachments. It requires that notice be issued to the person alleged to have caused the encroachment, and that the person be given an opportunity to show cause against the proposed removal. The provision ensures that no coercive action

is taken without the affected person being heard. The specific mention of Rule 4 in this Court's direction was intended to ensure that the rights of the Petitioners (who were the persons alleged to have encroached) were protected through the prescribed notice and hearing procedure.

21.12.7. In the present case, the Petitioners' specific grievance is that the spot inspection was conducted without prior notice and without their participation, and that the impugned order was passed without following the Rule 4 procedure. The impugned order dated 13.02.2025 does not indicate that the Rule 4 procedure, issuance of notice, receipt of

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the alleged encroacher's response, and consideration thereof, was properly followed before the order was passed. The failure to comply with the specific procedural requirement of Rule 4, which was expressly directed by this Court in W.P. No.18300/2022, is an independent and additional ground for holding the impugned order to be illegal and liable to be quashed.

21.13. Third, on the appellate order dated 30.07.2025 (Respondent No.1):

21.13.1. The Petitioners, upon being granted liberty to file an appeal by this Court in W.P. No.7693/2025, preferred an appeal before Respondent No.1 (the CEO, Zilla Panchayat) in Appeal No.1/2025. In that appeal, the Petitioners specifically raised the jurisdictional issue, that the Panchayat authorities lacked jurisdiction because the PDO had found the land to be outside the Panchayat's jurisdiction and that Section 211 proceedings were

required. However, the appellate order

dated 30.07.2025 passed by Respondent No.1 dismissed the appeal without specifically addressing the jurisdictional objection.

21.13.2. An appellate authority exercising quasi-judicial powers is required to address all the grounds raised before it, particularly those relating to jurisdiction. The failure to consider and address a jurisdictional objection, which, if valid, would go to the root of the matter, is a serious failure of the Appellate Authority's quasi-judicial function.

21.13.3. It is a well-established principle that when a quasi-judicial authority fails to consider a material ground raised before it, the order is liable to be interfered with in writ jurisdiction as it is passed without application of mind to a material issue.

21.14. Fourth, on the failure to consider the civil court injunction: The Petitioners have a pending civil suit (O.S. No.210/2022) before the II Additional Civil Judge and JMFC, Mandya, in which the civil court has granted a temporary injunction

restraining Respondent No.4 from interfering with the Petitioners' possession. The Petitioners contend that this injunction order was not taken into consideration by either the Executive Officer or the Appellate Authority. An injunction

order passed by a competent civil court, though operating between the parties to the civil suit, is a material circumstance that a quasi-judicial authority ought to have taken cognizance of. The failure to even acknowledge the existence of this injunction order in the impugned proceedings further vitiates the decision-making process.

21.15. For all the above reasons I answer Point No. (iv) by holding that the impugned order dated 13.02.2025 passed by Respondent No.2 suffers from (a) jurisdictional error in that it was passed without examining the PDO's Report dated 20.03.2023 which recorded lack of Panchayat jurisdiction; (b) violation of principles of natural justice in that the spot inspection was conducted without notice and opportunity to the Petitioners; and (c) non-application of mind to the jurisdictional objection raised by the Petitioners. The

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appellate order dated 30.07.2025 passed by Respondent No.1 suffers from (a) failure to address the specifically raised jurisdictional objection; and (b) non-consideration of the civil court injunction. Both impugned orders are therefore legally infirm and liable to be quashed in writ jurisdiction under Articles 226 and 227 of the Constitution of India.

22. Answer to Point No. (v):Whether the petitioners have established any grounds warranting interference by this Court in exercise of its jurisdiction under Articles 226 and 227 of the Constitution of India?

22.1. Sri. K.N. Nithish submits that the Petitioners have clearly made out a strong case for the exercise of this Court's jurisdiction under Articles 226 and/or 227 of the Constitution of India. According to him, the impugned orders are liable to be quashed in writ jurisdiction for the following cumulative grounds:

22.2. The proceedings under the 2011 Rules were initiated without jurisdiction, as the subject land is disputed private property and not Panchayat/Government property. The Panchayat Development Officer's own report

dated 20.03.2023 recorded the absence of Panchayat jurisdiction.

22.3. Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993 was not invoked, contrary to the mandate of law as laid down by the Division Bench of this Court in Smt. Gowramma.

22.4. The spot inspection was conducted without notice and opportunity to the Petitioners, in violation of the principles of natural justice.

22.5. The impugned order dated 13.02.2025 was passed without considering the PDO's Report dated 20.03.2023 and without addressing the jurisdictional objection.

22.6. The appellate order dated 30.07.2025 was passed without addressing the specifically raised jurisdictional objection and without considering the civil court injunction.

22.7. All the above grounds singly and cumulatively warrant the exercise of this Court's writ jurisdiction for the purpose of quashing the impugned orders.

22.8. Sri. Vishwanath N. submits that the Petitioners have not established any ground for the exercise of writ jurisdiction. The Panchayat authorities have acted strictly in compliance with the law and pursuant to the directions of this Court. The impugned orders are based on factual findings supported by survey reports and inspection. This Court ought to show deference to the factual findings of the competent authorities and should not substitute its own assessment of the factual position.

22.9. He submits that the writ jurisdiction under Articles 226 and 227 of the Constitution is supervisory in nature and is not meant to be invoked for a re-appreciation of evidence. In the present case, the Petitioners are seeking a re-examination of the factual finding of encroachment, which is not permissible in writ jurisdiction.

22.10. The petition deserves to be dismissed with appropriate directions for removal of the encroachment.

22.11. Sri. M.S. Devaraju submits that the writ petition is devoid of merit. The authorities have

discharged their statutory duty under the 2011 Rules to prevent encroachment on public property. The exercise of this statutory duty does not call for interference in writ jurisdiction.

22.12. The scope of writ jurisdiction under Articles 226 and 227 of the Constitution of India is well-established. Article 226 empowers the High Court to issue writs including writs of certiorari for the purpose of enforcement of fundamental rights and for any other purpose. Article 227 vests the High Court with the power of superintendence over all courts and tribunals within its jurisdiction.

22.13. In the exercise of its jurisdiction under Articles

226 and 227, this Court is empowered to interfere with orders passed by quasi-judicial authorities on the following grounds, among others:

22.13.1. Want of jurisdiction or excess of jurisdiction, when an authority acts without jurisdiction or exceeds its jurisdiction.

22.13.2. Error of law apparent on the face of the record.

22.13.3. Violation of principles of natural justice.

22.13.4. Non-compliance with mandatory statutory requirements.

22.13.5. Non-application of mind to material evidence.

22.14. This Court is not called upon to re-appreciate evidence or to substitute its own factual findings for those of the competent authorities. However, when the impugned orders suffer from jurisdictional infirmities, violations of natural justice, and non-compliance with the statutory scheme, all of which are questions of law, this Court is not only entitled but duty-bound to interfere in exercise of its writ jurisdiction.

22.15. In the present case, as held while answering Points (i) through (iv) above, the following grounds for writ interference are clearly established:

22.15.1. The proceedings under the 2011 Rules lack jurisdiction because the precondition under Rule 3 (that the land must not be private property) has not been satisfied. The land's character is disputed and Section 211 proceedings to determine the same have not been initiated. This is a jurisdictional infirmity.

22.15.2. The impugned order dated 13.02.2025 was passed without considering the PDO's Report dated 20.03.2023, which recorded the absence of Panchayat jurisdiction. This constitutes non-application of mind to a material document going to the root of jurisdiction.

22.15.3. The spot inspection relied upon was conducted without notice to the Petitioners, violating the principles of natural justice.

22.15.4. The Appellate Authority (Respondent No.1) dismissed the appeal without addressing the specifically raised

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jurisdictional objection, which constitutes a failure of quasi-judicial function.

22.15.5. The impugned orders are contrary to the law laid down by the Division Bench of this Court in Smt. Gowramma, which is binding upon this Court.

22.16. The submission of Sri. Vishwanath N. that this Court should not substitute its assessment of facts for that of the competent authorities is noted. However, this submission misses the point. The Petitioners are not seeking a re-appreciation of the factual finding of encroachment. They are raising questions of

law, lack of jurisdiction, violation of natural justice, and non-compliance with the statutory scheme, all of which fall squarely within the domain of writ jurisdiction. This Court is not re-examining whether there is any encroachment on the facts; this Court is examining whether the authorities had the jurisdiction to inquire into and adjudicate upon that question in the manner they did. The answer, as found above, is in the negative.

22.17. The principles laid down by the Hon'ble Supreme Court in Jagmittar Sain Bhagat, Thummala Krishna Rao, and M. Sankaranarayanan, and the binding decisions of this Court in Smt. Gowramma (Single Bench and Division Bench), collectively establish that the impugned orders are contrary to law and liable to be set aside. The orders have been passed in excess of jurisdiction, in violation of the principles of natural justice, in disregard of material evidence, and contrary to mandatory statutory requirements. All these grounds, singly and cumulatively, warrant the exercise of this Court's writ jurisdiction.

22.18. For all the aforesaid reasons I answer Point No. (v) by holding that the Petitioners have established grounds warranting interference by this Court in exercise of its jurisdiction under Articles 226 and 227 of the Constitution of India. The impugned orders suffer from jurisdictional infirmity, violation of principles of natural justice, non-application of mind to material evidence, and non-compliance with mandatory statutory requirements. This Court

is entitled and duty-bound to interfere with such orders in writ jurisdiction. Point

23. Answer to Point No. (vii):What order?

23.1. In view of the findings recorded under Points (i) through (v) above, I pass the following

ORDER

i. Writ petition is ALLOWED.

ii. The impugned order dated 13.02.2025 passed by Respondent No.2 (the Executive Officer and Competent Authority, Taluk Panchayat, Mandya) in Appeal No.19/2024-25 at Annexure-K to the writ petition is hereby QUASHED.

iii. The impugned appellate order dated 30.07.2025 passed by Respondent No.1 (the Chief Executive Officer and Appellant Authority, Zilla Panchayat, Mandya) in Appeal No.MDYZP-DEV00THS:1/2025 at Annexure-P to the writ petition is hereby QUASHED.

iv. The notice dated 21.08.2025 issued by Respondent No.3 (the Panchayat Development Officer, Basaralu Grama Panchayat) bearing

NC: 2026:KHC:15472 HC-KAR No.GRA PUM//2025-2026 at Annexure-S to the writ petition is hereby QUASHED.

v. The Panchayat authorities and the concerned respondents are at liberty to initiate appropriate proceedings under Section 211 of the Karnataka Gram Swaraj and Panchayat Raj Act, 1993 before the Assistant Commissioner, Mandya Taluk, if so advised, for adjudication of the competing claims of the parties regarding the subject property, after issuing due notice to all stakeholders including the Petitioners and Respondent No.4.

vi. The civil suit O.S. No.210/2022 pending before the II Additional Civil Judge and JMFC, Mandya, shall continue to be heard and decided on its own merits and is not affected by this order.

vii. Pending the initiation and completion of Section 211 proceedings, status quo as to the physical position of the properties in question shall be maintained by all parties as it exists on this day.

NC: 2026:KHC:15472 HC-KAR viii. Respondent No.4 is at liberty to pursue all other available remedies in accordance with law before appropriate fora.

Sd/-

(SURAJ GOVINDARAJ) JUDGE List No.: 19 Sl No.: 3